ARTICLES

MORE HARM THAN GOOD: CRIMINAL PENALTIES FOR WAGE THEFT

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ABSTRACT

"Wage theft is a crime." Workers, their advocates, and even some policymakers have made this declaration repeatedly to emphasize the severity of violations of wage and hour laws. In recent years, this campaign has moved beyond mere rhetoric into increased criminal enforcement. Various obstacles to seeking remedies through the civil system have buoyed this expansion. This Article critiques criminal strategies to remedy wage theft. It first identifies three spheres of harm caused by wage theft: (1) to individuals laboring in low-wage industries; (2) to the workplaces where employers engage in wage theft, and (3) to communities to which impacted workers belong. It then examines the criminal penalty provisions on the books in all fifty states and Washington, D.C., and analyzes their implementation in selected jurisdictions, using data gathered from various sources. This close examination of criminal penalties and their enforcement uncovers a deep disconnect between what criminal strategies seek to achieve–or are even capable of achieving—and the

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harms for which impacted workers seek remedies. The Article argues that various practices in the criminal system utilized in wage theft prosecutions, such as an emphasis on incarceration to coerce compliance and a rigid adversarial system, further entrench practices detrimental to the communities most impacted by wage theft and undermine efforts to engage workers collectively and to build coalitions across racial and immigrant justice movements. The Article identifies various anti-wage theft strategies that align more closely with remedying the harms experienced by workers. It concludes by renewing a call to center workers' experiences in developing anti-wage theft strategies and to invest in strategies that seek structural change, both within and outside of the legal system.

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INTRODUCTION

Wage theft[1] takes many different forms and impacts workers across a range of industries. Three cases, drawn from my experience supervising students in the Civil Practice Clinic at the University of Pennsylvania Carey Law School, illustrate some common patterns.

One case involved a food-processing worker paid exclusively in cash at a flat rate each day. He often worked twelve or more hours a day for five to six days per week. His hourly wages fell below the federal minimum wage, a meager $7.25 per hour, and he never received overtime pay. Without those wages, the client struggled to pay rent and to support his elderly mother.

Another client worked for a home health care agency, where she assisted elderly patients in their homes with day-to-day tasks. She often worked sixty-hour weeks, which included overnight shifts. On numerous occasions, the worker who came to relieve her arrived late for their shift, so this client remained with a patient who required around-the-clock care. The employer refused to pay her for these additional hours. When she complained, her supervisor brushed her off and told her, "So sue us." In later pursuing legal action, this client sought to challenge the employer's belief that it could take advantage of her with no consequences.

A third case involved an employee who regularly worked fifty to sixty hours per week at a grocery store and never received overtime wages. When she learned that the law required her employer to pay her an overtime rate for all hours worked over forty hours each week, she asked her manager to ensure she was paid appropriately for those hours. One week later, the employer terminated her. Though the employer's reaction was egregious, and retaliatory under the law, this worker decided she did not wish to pursue legal claims, as she found a new job in a similar line of work and had a family to support.

These three vignettes offer examples of wage theft and illustrate patterns that scholars, practitioners, advocates, and workers themselves have identified. Wage theft is pervasive in low-wage

1. "Wage theft" has become the commonly used term for wage and hour violations and has been adopted by workers and their advocates, and now more broadly. "Wage theft" describes violations of wage and hour laws under civil or criminal law.

industries, especially service-related industries and home care, among others;[2] wage theft disproportionately impacts low-wage immigrant workers, which all three clients were, as well as Black and brown workers and women of color in low-wage industries;[3] and, wage theft is more common in smaller businesses.[4] Employers are emboldened to commit wage theft because they face few consequences, given the challenges in holding them accountable.[5] Across the low-wage workforce, wage theft causes tremendous economic losses for impacted workers.[6]

While the economic harms of wage theft may seem obvious, wage theft harms, as experienced by impacted workers, are more extensive than a number. Drawing upon legislative testimony, advocacy reports, and others' qualitative research, this Article describes three different spheres of harm: to individuals, to the workplaces in which they labor, and to the communities to which they belong. On an individual level, the financial loss of even one paycheck to

2. ANNETTE BERNHARDT ET AL., NAT'L EMP. L. PROJECT, BROKEN LAWS, UNPROTECTED WORKERS: VIOLATIONS OF EMPLOYMENT AND LABOR LAWS IN AMERICA'S CITIES 31, 34–37 (2009), https://www.nelp.org/app/uploads/2015/03/BrokenLawsReport2009.pdf [https://perma.cc/XL46-T6ZS] [hereinafter BERNHARDT ET AL., BROKEN LAWS] (finding prevalence of wage theft, including minimum wage and overtime violations, across various low-wage industries); *see also Low Wage, High Violation Industries*, U.S. DEP'T OF LAB. (Oct. 1, 2025), https://www.dol.gov/agencies/whd/data/charts/low-wage-high-violation-industries [https://perma.cc/R2UD-KAN2] (identifying twenty low-wage, high-violation industries based on DOL compliance actions).

3. Janice Fine & Jenn Round, *Governing for Worker Power: Worker Centers Lead the Way on Labor Law Enforcement*, NEW LAB. F., Winter 2024, at 44, 45 (citing to multiple studies demonstrating wage theft's prevalence among immigrant, Black, Indigenous, and people of color, particularly women, in low-wage industries); Annette Bernhardt, Michael W. Spiller & Nik Theodore, *Employers Gone Rogue: Explaining Industry Variation in Violations of Workplace Laws*, 66 INDUS. LAB. REV. 808, 816 (2013) [hereinafter Bernhardt et al., *Employers Gone Rogue*] (noting that immigrant workers comprised a disproportionate share of the low-wage labor market and therefore of the workers surveyed for wage theft).

4. Bernhardt et al., *Employers Gone Rogue*, *supra* note 3, at 819–20, 824; Janice Fine & Jennifer Gordon, *Strengthening Labor Standards Enforcement through Partnerships with Workers' Organizations*, 38 POL. & SOC'Y. 552, 554–55 (2010) (noting that the industries at greatest risk of FLSA violations are smaller business, with fewer than twenty employees).

5. *See infra* Sections II.A–B.

6. *See, e.g.*, BERNHARDT ET AL., BROKEN LAWS, *supra* note 2, at 50; IHNA MANGUNDAYAO, CELINE MCNICHOLAS, MARGARET POYDOCK & ALI SAIT, ECON. POL'Y INST., MORE THAN $3 BILLION IN STOLEN WAGES RECOVERED FOR WORKERS BETWEEN 2017 AND 2020, at 11 (2021), https://files.epi.org/uploads/240542.pdf [https://perma.cc/GYX4-43WH] (describing a "widespread epidemic" of wage theft that "costs workers, their families, and communities billions of dollars each year"); *see also* DAVID COOPER & TERESA KROEGER, ECON. POL'Y INST., EMPLOYERS STEAL BILLIONS FROM WORKERS' PAYCHECKS EACH YEAR 2, 9 (2017), https://www.epi.org/publication/employers-steal-billions-from-workers-paychecks-each-year/ [https://perma.cc/FB6Y-8QJ3] (estimating that workers in the ten most populous states lost eight billion dollars annually as a result of employers' failure to comply with minimum wage laws).

wage theft can mean missing rent, struggling to buy groceries, or being unable to care for one's family.[7] Impacted workers also express emotional, psychological, and dignitary harms from wage theft.[8] In the workplace sphere, wage theft has reverberating consequences beyond the workplace where it occurs. Employers who commit wage theft flout some of the most basic labor protections, which then risk eroding other workplace standards and norms, like those related to health and safety, among others.[9] Finally, wage theft inflicts harm upon communities to which workers belong, as it leaves workers most impacted in a cycle of precarious and exploitative work.[10] Because workers most impacted by wage theft are Black and brown, immigrant, and women of color, wage theft exacerbates racial inequities in and beyond the labor context, making economic security, and all its corresponding benefits, nearly unattainable.[11] Wage theft therefore is not just an economic justice issue limited to the workers who experience it, but one that intersects with racial and immigrant justice. Wage theft remedies that center workers' experiences therefore should account for the three spheres of harm.

Despite the tremendous scope of the problem, seeking justice for wage theft and holding employers accountable has proven to be incredibly difficult.[12] The brazen response of the clinic client's supervisor, "so sue us," is unfortunately common. Employers know that consequences for their non-compliance are unlikely, and workers often are unable to spend time and energy, and sometimes money,

7. *See infra* Section I.A. (describing individual harms of wage theft as explained through worker accounts and testimony).

8. REBECCA BERKE GALEMBA, LABORING FOR JUSTICE: THE FIGHT AGAINST WAGE THEFT IN AN AMERICAN CITY 148–49 (2023).

9. Annette Bernhardt, Heather Boushey, Laura Dresser & Chris Tilly, *An Introduction to the "Gloves-off" Economy*, *in* THE GLOVES-OFF ECONOMY: WORKPLACE STANDARDS AT THE BOTTOM OF AMERICA'S LABOR MARKET 1, 6–8 (Annette Bernhardt et al. eds., 2008) [hereinafter Bernhardt et al., *Gloves Off*] (explaining how pervasive wage theft dilutes workplace norms and standards).

10. *See infra* Section I.C.

11. COOPER & KROEGER, *supra* note 6, at 19–21 (finding that nonwhite workers and non-U.S. citizens experienced higher rates of minimum wage violations); Bernhardt et al., *Employers Gone Rogue*, *supra* note 3, at 823 (finding that U.S.-born workers and documented immigrants experienced significantly lower rates of workplace violations than undocumented workers); *see also* Llezlie Green Coleman, *Disrupting the Discrimination Narrative: An Argument for Wage and Hour Laws' Inclusion in Antisubordination Advocacy*, 14 STAN. J. C.R. & C.L. 49, 49 (2018) (applying antisubordination framework to wage and hour violations experienced by Black workers).

12. *See infra* Section II.B.

to hold employers accountable.[13] There are many reasons that employers can so easily dodge any consequences for failing to comply with wage and hour laws, such as under-resourced federal, state, and local agencies,[14] the limitations of private actions,[15] the expansion of forced arbitration of workplace disputes,[16] and complaint-driven enforcement models.[17] Structural obstacles in workplaces, such as fissuring, also contribute significantly to challenges with compliance.[18]

Because of these obstacles, advocates have adopted language of the criminal legal system by labeling wage and hour violations "wage theft" and emphasizing that "wage theft is a crime."[19] In

13. BERKE GALEMBA, *supra* note 8, at 113–14 (documenting the reluctance of workers in the day labor market to pursue legal action); COOPER & KROEGER, *supra* note 6, at 5–6.

14. *See infra* Section II.B.

15. Even though employees can pursue a private action for wage violations, with the exception of legal service providers that have strict income limitations and law school clinics that take few cases each year, private attorneys have little incentive to assist workers with low damages amounts. Organizations that receive funding from the Legal Services Corporation are also restricted, with narrow exceptions, from representing undocumented immigrants, who are disproportionately affected by wage theft. *LSC Restrictions and Other Funding Sources*, LEGAL SERVS. CORP. (Jan. 23, 2024), https://www.lsc.gov/about-lsc/laws-regulations-and-guidance/lsc-restrictions-and-other-funding-sources [https://perma.cc/E2Y4-5SUF].

16. Forced arbitration also limits the potential for public accountability and collective wage actions. Nantiya Ruan, *What's Left to Remedy Wage Theft? How Arbitration Mandates That Bar Class Actions Impact Low-Wage Workers*, 2012 MICH. ST. L. REV. 1103, 1105, 1125–26, 1129 (2012); Cynthia Estlund, *The Black Hole of Mandatory Arbitration*, 96 N.C. L. REV. 679, 688–89 (2018) [hereinafter Estlund, *Mandatory Arbitration*] (examining recent studies related to arbitration of employment claims that show that arbitration leads to less favorable outcomes for employees and that employees are less likely to even pursue claims in arbitration).

17. *See* Jennifer J. Lee & Annie Smith, *Regulating Wage Theft*, 94 WASH. L. REV. 759, 784–89 (2019) (explaining obstacles of complaint-based models of regulatory compliance); *see also* David Weil & Amanda Pyles, *Why Complain? Complaints, Compliance, and the Problem of Enforcement in the U.S. Workplace*, 27 COMPAR. LAB. L. & POL'Y J. 59, 72–73 (2005) (finding that complaint-driven processes often led enforcement actions to focus on employers in industries with lower levels of noncompliance, rather than industries with the highest levels of noncompliance).

18. "Fissuring" of the workplace, a term coined by David Weil, "reflects a fundamental restructuring of business organizations" and involves practices like subcontracting, outsourcing, and offshoring. DAVID WEIL, THE FISSURED WORKPLACE: WHY WORK BECAME SO BAD FOR SO MANY AND WHAT CAN BE DONE TO IMPROVE IT 76–77, 91–92 (2017). Fissuring allows larger employers to pass responsibility for labor and employment of much of the workforce to smaller entities, and more advanced fissuring has been found to correlate with higher rates of violations of labor standards and worsening workplace conditions. *Id.* at 8, 16–17 (describing industries with more advanced fissuring, including restaurant and hospitality, janitorial services, construction, and home health care).

19. Letitia James et al., *Wage Theft is a Serious Crime. We're Finally Treating It That Way*, TIMES UNION (Sept. 12, 2023), https://www.timesunion.com/opinion/article/wage-theft-a-serious-crime-finally-treating-way-18360007.php [https://perma.cc/WG7L-BQFA].

recent years, this campaign has moved beyond mere rhetoric into enforcement, and criminal legal strategies to address wage theft have gained more traction, especially with the election of progressive prosecutors in some jurisdictions.[20]

This Article contributes to scholarship critical of this approach[21] by examining whether criminal penalties and their enforcement remedy the three spheres of harm inflicted by wage theft. It first provides a comprehensive review of wage theft criminal penalties in all fifty states and Washington, D.C. The analysis reveals different state strategies in enacting wage theft criminal penalties and the severe penalties that could potentially be imposed in some states.[22] Using data collected through public records requests, press releases, publicly available documents, and interviews with prosecuting and workers' rights attorneys, it then describes the enforcement of criminal penalties provisions in four jurisdictions, selected for their different criminal statutory schemes: Connecticut, Washington, D.C., Minnesota, and New York. This close examination of criminal penalties and their enforcement uncovers a troubling disconnect between what criminal strategies seek to achieve—or are even capable of achieving—and the harms for which impacted workers seek remedies. The criminal system's

20. Lee & Smith, *supra* note 17, at 772, 780 (examining anti-wage theft strategies enacted in twenty-four states and fifty-seven localities from 2005 to 2018 and finding ten percent implemented criminal strategies); Terri Gerstein, *Stealing from Workers Is a Crime. Why Don't More Prosecutors See It That Way?*, THE NATION (May 24, 2018), https://www.thenation.com/article/archive/stealing-from-workers-is-a-crime-why-dont-prosecutors-see-it-that-way/ [https://perma.cc/QR8W-4TTC]; *see also* Rita J. Verga, *An Advocate's Toolkit: Using Criminal "Theft of Service" Laws to Enforce Workers' Right to Be Paid*, 8 CUNY L. REV. 283, 290–92 (2005) (explaining how theft of services laws may be used to prosecute employers who commit wage theft). The election of progressive prosecutors in certain jurisdictions has brought more attention to wage theft criminal strategies. *See* Seema Gajwani & Max G. Lesser, *The Hard Truths of Progressive Prosecution and a Path to Realizing the Movement's Promise*, 64 N.Y. L. SCH. L. REV. 69, 71 (2020) (describing "a wave of progressive district attorneys elected to office across the country"); *see also* Jeanne Kuang & Levi Kalish, *Though Wage Theft Is a Crime, few California DAs File Charges For It*, CAL MATTERS, https://calmatters.org/california-divide/2022/10/california-wage-theft/#:~:text=The%20initiatives%20coincide%20with%20an,people%20of%20color%20or%20immigrants [https://perma.cc/5J22-FXJH] (Oct. 25, 2022).

21. *See generally* Benjamin Levin, *Wage Theft Criminalization*, 54 U.C. DAVIS L. REV. 1429 (2021) (examining traditional theories of criminal punishment to argue that the criminal system cannot deliver what proponents of wage theft criminalization seek from that system); Stephanie Richard, *Against Criminalizing Wage Theft: Lessons from the Antitrafficking Movement*, 46 CARDOZO L. REV. 1317 (2025) (analyzing human trafficking prosecutions through an anti-carceral lens to critique the criminalization of wage theft).

22. *E.g.*, S. 2832–A, 2023–2024 Reg. Sess. (N.Y. 2023) (making wage theft a felony under New York's penal code and allowing aggregation of wages taken from victims); *see infra* Part III.

failures to remedy the three distinct spheres of harm experienced by impacted workers therefore necessitates pursuing strategies outside of the criminal system.

This Article proceeds as follows. Part I frames the spheres of harm inflicted by wage theft—for individuals, workplaces, and communities. Relying on sources that emphasize the lived experiences of impacted workers, this Part describes the three spheres of harm based on workers' accounts of wage theft. Part II provides a brief overview of the civil statutes and enforcement against wage theft. It explains the limitations of civil enforcement mechanisms, and why some workers, advocates, and policymakers have turned to the criminal system as a tool to remedy wage theft. Part III describes the state-specific criminal penalties provisions for wage theft, focusing on violations for failure to pay the minimum wage, overtime, and wages in general, which are typically contemplated under laws identified as anti-wage theft laws. This Part also relies on data from public records requests, information from press releases and publicly available documents, and interviews with workers' rights and prosecuting attorneys to provide a descriptive account of wage theft criminal prosecutions in four jurisdictions: Connecticut, Minnesota, New York, and Washington, D.C.

Using this descriptive account, Part IV returns to the three spheres of harm to argue that the criminal system fails to center impacted workers, as it does not remedy the different spheres of harm that they experience. It identifies three practices in wage theft prosecutions that conflict with worker-centered approaches to remedying wage theft: (1) discretion of different actors within an adversarial and punitive system; (2) reliance on the threat of incarceration to coerce compliance; and (3) collateral consequences, focusing on immigration consequences of criminal penalties. The final Part identifies various anti-wage theft strategies that align more closely with remedying the harms experienced by workers, while also recognizing some of the limitations of the civil system. It renews a call to center workers' experiences in developing anti-wage theft strategies and to invest in strategies that seek structural change within and outside of the legal system.

I. WAGE THEFT SPHERES OF HARM

Amid the myriad challenges that low-wage workers face in the workplace,[23] wage theft warrants particular consideration. Wage theft is pervasive in industries that rely heavily on low-wage labor, such as construction, food services, and home health care, among others.[24] Individuals working in low-wage industries experience wage theft at shocking rates, though gathering data on the full scope of the problem is challenging, given its ubiquity, its concentration in low-wage and informal industries, and the fact that some workers may not report or even know that they have experienced wage theft. Despite these challenges, various studies have revealed the scope of wage theft in the United States. In 2009, Annette Bernhardt and co-authors published the results of a survey of over 4,000 workers in the three largest U.S. cities, Chicago, Los Angeles, and New York City.[25] More than two-thirds of the workers surveyed had experienced a pay violation in the past week.[26] The study also found that 25.9% of workers reported not receiving minimum wage in the week prior to the survey and seventy-six percent were not paid the legally required overtime rate by their employers.[27] More recent reports show that wage theft continues to be prevalent in low-wage industries. In a 2017 study examining minimum wage violations in the ten most populous U.S. states, researchers found that seventeen percent of low-wage workers eligible for minimum wage reported being paid less than the legally required minimum wage of that state.[28]

Wage theft is not isolated to one industry or region. Studies from different geographic locations reveal the same pattern—where employers rely on low-wage workers, particularly those from

23. *E.g.*, Sherley E. Cruz, *Essentially Unprotected*, 96 TUL. L. REV. 637, 637 (2022) (examining racial inequities faced by workers in low-wage industries, specifically meatpacking, during the COVID-19 pandemic); Llezlie Green Coleman, *Exploited at the Intersection: A Critical Race Feminist Analysis of Undocumented Latina Workers and the Role of the Private Attorney General*, 22 VA. J. SOC. POL'Y & L. 397, 398, 404 (2015) (examining workplace exploitation of undocumented Latina workers, including wage theft and sexual harassment).

24. *See* U.S. DEP'T OF LAB., *supra* note 2 (identifying twenty low wage, high violation industries based on DOL compliance actions); BERNHARDT ET AL., BROKEN LAWS, *supra* note 2, at 31–35 (identifying rates of minimum wage and overtime violations in different low-wage industries).

25. BERNHARDT ET AL., BROKEN LAWS, *supra* note 2, at 8–9.

26. *Id.* at 5.

27. *Id.* at 20–21.

28. COOPER & KROEGER, *supra* note 6, at 9.

marginalized communities, employers disproportionately engage in wage theft.[29] Workers in Florida reported the highest rate of minimum wage violations, while workers in Texas and Pennsylvania experienced the most financial harm, losing nearly a third of their wages and over a third, respectively.[30]

While these numbers demonstrate how extensive this problem is, to examine legal strategies to address wage theft, it is imperative to understand how it affects impacted workers. This Section describes three distinct spheres of harm inflicted by wage theft: (1) to the individual, specifically workers who experience wage theft; (2) to the workplace, especially norms in the affected workplace and other workplaces in that industry; and (3) to the community, meaning communities to which impacted workers belong.

A. *Individual Harms*

Wage theft pushes workers into poverty or to the edge of poverty.[31] This economic precarity threatens the stability of workers' housing and health.[32] Workers who do not receive minimum wage, especially in states that match the federal minimum wage,[33] may be unable to afford rent, childcare, or food when they are not paid,

29. *See e.g.*, BERKE GALEMBA, *supra* note 8, at 6 (focusing on wage theft in the day laborer market in Denver); WORKERS DEFENSE PROJECT, BUILD A BETTER TEXAS: CONSTRUCTION WORKING CONDITIONS IN THE LONE STAR STATE (2013), https://workersdefense.org/wp-content/uploads/2023/01/Build-a-Better-Texas.pdf [https://perma.cc/M2GR-J795] (examining wage theft and safety violations in the construction industry in Texas).

30. COOPER & KROEGER, *supra* note 6, at 11–12.

31. *Id.* at 13–14 (determining that workers who suffer minimum wage violations are three times more likely to be in poverty compared to someone chosen at random in the eligible workforce).

32. Matthew Fritz-Mauer, *The Ragged Edge of Rugged Individualism: Wage Theft and the Personalization of Social Harm*, 54 U. MICH. J. L. REFORM 735, 748–51 (2021) (describing workers' "cascading" harms caused by wage theft).

33. The federal minimum wage, $7.25 per hour, has remained unchanged since 2009. 29 U.S.C. § 206(a)(1); *see also History of Changes to the Minimum Wage Law*, U.S. DEP'T LAB., https://www.dol.gov/agencies/whd/minimum-wage/history [https://perma.cc/CE67-BHFH].

and they face negative health consequences.[34] Even workers with full-time employment are forced to rely on public benefits.[35]

Workers describe the impact of wage theft as more than just financial; it creates a lack of security and harms their sense of dignity. After conducting qualitative research in Washington, D.C., involving workers impacted by wage theft, Matthew Fritz-Mauer concluded that wage theft inflicted significant personal costs and caused negative mental and psychological consequences for impacted workers.[36] During legislative hearings in 2014 in Washington, D.C., concerning then-proposed legislation, the Wage Theft Prevention Act, over thirty workers and worker advocates shared testimony about their experiences with wage theft.[37] Many workers testified that when their employer failed to pay them, they struggled to pay rent and to support family members who were dependent upon them.[38] Others expressed the harm to their dignity[39]

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34. Daniel J. Galvin, *Deterring Wage Theft: Alt-Labor, State Politics, and the Policy Determinants of Minimum Wage Compliance*, 14 PERSPS. ON POL. 324, 325 (2016); *see Improving Health by Increasing the Minimum Wage*, AM. PUB. HEALTH ASS'N (Nov. 1, 2016), https://www.apha.org/policy-and-advocacy/public-health-policy-briefs/policy-database/2017/01/18/improving-health-by-increasing-minimum-wage [https://perma.cc/T5VJ-BB4Z] (explaining various negative health outcomes associated with populations with lower incomes).

35. *See* U.S. GOV'T ACCOUNTABILITY OFF., GAO-21-45, FEDERAL SOCIAL SAFETY NET PROGRAMS: MILLIONS OF FULL-TIME WORKERS RELY ON FEDERAL HEALTH CARE AND FOOD ASSISTANCE PROGRAMS 9–10 (2020), https://www.gao.gov/products/gao-21-45 [https://perma.cc/7R5B-GXXR] (finding that ninety percent of wage-earning adults enrolled in Medicaid and SNAP worked in the private sector, and over two-thirds worked full-time hours each week); Ken Jacobs, Kuochih Huang, Jenifer MacGillvary & Enrique Lopezlira, *The Public Cost of Low-Wage Jobs in the US Construction Industry*, U.C. BERKELEY CTR. FOR LAB. RSCH. & EDUC. (Jan. 2022), https://laborcenter.berkeley.edu/wp-content/uploads/2022/01/The-Public-Cost-of-Low-Wage-Jobs-in-the-US-Construction-Industry-FINAL.pdf [https://perma.cc/75RC-3Q54] (finding that thirty-nine percent of families of construction workers were enrolled in one or more safety net programs, which cost close to twenty-eight billion dollars per year).

36. Fritz-Mauer, *supra* note 32, at 748, 751–54.

37. COUNCIL OF D.C. COMM. ON BUS., CONSUMER, & REGUL. AFFS., COMMITTEE REPORT 5–13 (2014), https://lims.dccouncil.gov/downloads/LIMS/31203/Committee_Report/B20-0671-CommitteeReport1.pdf?Id=60927 [https://perma.cc/S56K-XTW3].

38. *Id.* at 108–09 (statement of Michelle Cash) (explaining how wage theft caused her to fall behind on her utility bills and mortgage and to struggle to care for her bedridden mother); *id.* at 111 (statement of Bruno Avila) (describing how wage theft led to losing stable housing due to an inability to pay rent); *id.* at 130 (statement of Reynaldo Antonio Cruz) (stating that he lost his apartment and his ability to provide money for his family due to wage theft).

39. *Id.* at 69 (statement of Tibebe Ayle).

> Some people have asked, why I put up with it and why I didn't find another job. The reality is that at the time, I did not have any other options. I needed the money desperately, so I put up with being treated like a slave with no rights until I was able to improve my situation.

Id.

and the importance of strengthening retaliation measures so that workers who did speak up about wage theft were protected.[40] Fears of retaliation are common and often lead workers to abandon claims, further contributing to their feelings of powerlessness.[41] Through her research with day laborers in Denver, Colorado, Rachel Berke Galemba found that workers expressed rage and self-blame in response to wage theft, as well as an affront to their dignity.[42] Advocacy reports from different regions highlight a similar narrative from workers—the cycle of insecurity caused by low-wage work gets exacerbated by wage theft, leaving workers impacted by wage theft to suffer the economic, social, and psychological consequences with little recourse.[43]

B. *Workplace Harms*

Wage theft also inflicts harm in the workplace more broadly. It does so in two primary ways. First, wage theft creates and reinforces conditions that leave workers more vulnerable to other forms of exploitation.[44] Getting paid for one's work is a fundamental part of any working relationship. Wage and hour protections represent some of the most basic rights that workers have in the workplace. These protections, especially federal, state, and local laws combined, cover a greater number of employees than other worker protection laws.[45] When employers fail to fulfill the most

40. *Id.* at 68 (statement of Danny Felix) (explaining that protections from retaliation may be the "biggest thing" because workers fear losing their job if they report issues in the workplace, like wage theft).

41. *See* Lee & Smith, *supra* note 17, at 770 (identifying retaliation as an explanation for why low-wage workers do not attempt to assert their rights, either at all or to a significant degree); SHELLER CTR. FOR SOC. JUST., SHORTCHANGED: HOW WAGE THEFT HARMS PENNSYLVANIA'S WORKERS AND ECONOMY 8 (2015), https://law.temple.edu/csj/wp-content/uploads/sites/3/2015/09/Wage-Theft-Report.pdf [https://perma.cc/2QXV-3M2T] (describing heightened fears of retaliation for immigrant workers).

42. BERKE GALEMBA, *supra* note 8, at 148–49.

43. *See, e.g.*, WORKERS DEFENSE PROJECT, *supra* note 29, at iv (detailing the story of a construction worker whose employer stole thousands of dollars in unpaid wages from him, causing him to lose his family home); FAST FOOD FORWARD, NEW YORK'S HIDDEN CRIME WAVE: WAGE THEFT AND NYC'S FAST FOOD WORKERS 2, 6 (2013), https://www.labornotes.org/sites/default/files/nyc.hidden.crime_.wave_.report.pdf [https://perma.cc/4QQH-322G] (describing experiences of fast-food workers in New York City and the impacts of wage theft).

44. *See* BERKE GALEMBA, *supra* note 8, at 73 ("Wage theft is conditioned by, as it also reinforces, multiple aspects of precarity that ripple through low-wage immigrant workers' social lives.").

45. Nicole Hallett, *The Problem of Wage Theft*, 37 YALE L. & POL'Y REV. 93, 94 (2018) ("FLSA contains one of the broadest definitions of 'employee' in federal law today and, unlike other employment statutes, FLSA covers all but the smallest employers.").

basic labor standards, like minimum wage laws, these violations risk erosion of other labor standards in the workplace.[46] The normalization of wage theft only dilutes other norms that protect workplaces and allows further exploitation to creep into workplaces.[47]

Indeed, workers who experienced wage theft reported other forms of exploitation. Workplaces in which wage theft is the norm are often unsafe environments for workers, physically and psychologically.[48] According to an advocacy report, in the Texas construction industry, one in five workers surveyed suffered a workplace injury that required medical attention while sixty percent never had basic safety training.[49] Meanwhile, workers in these industries lack access to the workers' compensation system, sometimes as a direct result of misclassification, a wage theft tactic that classifies workers as "independent contractors" instead of "employees."[50] In the *Broken Laws* study, researchers found that "only [eight] percent of the workers [surveyed] who [had] experienced a serious injury during the previous three years had filed a workers'

46. JANICE FINE, DANIEL J. GALVIN, JENN ROUND & HANA SHEPHERD, MAINTAINING EFFECTIVE U.S. LABOR STANDARDS ENFORCEMENT THROUGH THE CORONAVIRUS RECESSION 4 (Sept. 2020) [hereinafter WASHINGTON CENTER], https://equitablegrowth.org/wp-content/uploads/2020/09/090320-labor-enforcement-report.pdf [https://perma.cc/ZKS9-53LZ].

> If minimum wage laws are not enforced during the current recession, then not only are the most vulnerable workers—those already struggling to make ends meet on poverty wages—at a higher risk of financial harm due to wage theft by their employers, but also the whole structure of wages in an industry or a city is weakened.

Id.

47. Bernhardt et al., *Gloves Off*, *supra* note 9, at 6–7 (explaining that growing wage violations in the construction industry create competition for more established and high-wage contractors, "driving them to dilute or abandon long-established norms").

48. Nicole Hallett, *Wage Theft and Worker Exploitation in Health Care*, 24 AMA J. ETHICS 890, 890–91 (2022), https://journalofethics.ama-assn.org/sites/joedb/files/2022-08/msoc2-peer-2209.pdf [https://perma.cc/3TJA-CDYW] (explaining wage theft in the home health industry and other unsafe working conditions, such as verbal abuse, sexual harassment, and lack of personal protective equipment); *Supporting and Sustaining the Home Care Workforce to Meet the Growing Need for Long-Term Care*, AM. PUB. HEALTH ASS'N (Oct. 23, 2020), https://www.apha.org/policies-and-advocacy/public-health-policy-statements/policy-database/2021/01/13/supporting-and-sustaining-the-home-care-workforce [https://perma.cc/CC8X-D5WG] (describing lack of protections for home care workers, including lack of sick leave or other leave, exposure to injuries, and erratic schedules); Charlotte S. Alexander & Arthi Prasad, *Bottom-Up Workplace Law Enforcement: An Empirical Analysis*, 89 IND. L.J. 1069, 1085 n.66 (2014) (explaining reports of other rights violations from wage theft survey of low-wage workers in California, such as limited or denied meal breaks, instances of sexual harassment, and verbal abuse or other degrading treatment).

49. WORKERS DEFENSE PROJECT, *supra* note 29, at ii.

50. *Id.* at 25.

compensation claim."[51] In advocacy reports and other studies, workers shared their experiences with other forms of exploitation at work, including harassment, bullying, and other dignitary harms, which may not be protected by existing laws.[52] Egregious violations of wage and hour laws may also be an indication of labor trafficking. Wage theft, combined with threats of deportation or criminal action, dangerous working conditions that compromise worker health and safety, and other coercive practices, may meet the federal definition of labor trafficking.[53]

Second, when employers face no repercussions for committing wage theft, it becomes a practice that they replicate in workplaces across the industry.[54] Wage theft then becomes normalized, not only in that specific workplace, but across different workplaces in that industry. Employers who do not commit wage theft face a competitive disadvantage compared to employers who regularly engage in the practice.[55] Legislators and advocates have noted how the practice of wage theft drives good or "honest" employers out of business.[56] Rebecca Berke Galemba explained how wage theft became normalized in industries that rely on day laborers, like construction, and detailed employer tactics for committing wage

51. BERNHARDT ET AL., BROKEN LAWS, *supra* note 2, at 25.

52. BERKE GALEMBA, *supra* note 8, at 89–91 (exploring other harms and humiliations experienced by day laborers that fall outside of legal protections); *see also* H. ESTEBAN DIAZ, SARA MILSTEIN, DOUGLAS THIE & CHANNELL SINGH, UNC IMMIGR./HUM. RTS. POL'Y CLINIC, PICKING EMPTY POCKETS 10 (2012), https://law.unc.edu/wp-content/uploads/2019/10/empty-pocketsfinal.pdf [https://perma.cc/X7K8-AW8D] (finding that interviewed workers who experienced wage theft also shared accounts of racially discriminatory treatment in their workplaces).

53. *See* 18 U.S.C. § 1589 (defining criminal labor trafficking under federal law); *see also* Complaint at 1–2, Doe v. Mastercorp, Inc., No. 1:24-cv-00678 (E.D. Va. Apr. 25, 2024) (alleging FLSA violations and labor trafficking on behalf of housekeepers from Colombia who allegedly experienced wage theft, crowded housing conditions, and immigration threats).

54. *See, e.g.*, U.C. BERKELEY CTR. FOR LAB. RSCH. & EDUC., *supra* note 35, at 2 (describing the development of a bifurcated construction industry with "high-road and low-road sectors").

55. Fritz-Mauer, *supra* note 32, at 755–57 (summarizing an interview with an employer in the cleaning industry in Washington, D.C., about the competitive disadvantage for employers who do not commit wage theft).

56. *See* Unpaid Wages Prohibition Act, 1997 N.Y. Laws Ch. 605 (S. 5071-C) (codified at N.Y. LAB. LAW § 198-a (1997)) ("Honest employers, who constitute the vast majority of those doing business in our state, suffer from unfair competition when others cut costs by underpaying their workers. Finally, the state loses precious tax revenue when employers avoid payment of wages."); *see also* COUNCIL OF D.C. COMM. ON BUS., CONSUMER, & REGUL. AFFS., *supra* note 37, at 148 (statement of Catherine Bryant) (stating that wage theft "results in millions of dollars of tax and payroll fraud, places law-abiding citizens at a competitive disadvantage, and depresses consumer spending").

theft.[57] Her research revealed "that wage theft is frequently an intentional and patterned practice that becomes a way of doing business across many low-wage industries."[58]

C. *Community Harms*

In its broadest sphere, wage theft inflicts harm to communities, which this Article defines as communities to which impacted workers belong. Workers most impacted by wage theft are Black and brown workers, women of color, and undocumented workers.[59] During the period of the Great Recession, from 2008 to 2010, wage theft was two times greater for non-citizens than citizens; Black workers and women were nearly fifty percent more likely to experience wage theft than white workers and men; and Latine workers were eighty-four percent more likely to experience wage theft than white workers.[60] The disproportionate harms to Black and Latine workers, immigrant workers, and women are not limited to periods of recession, however, and these same groups experience wage theft at higher levels across different industries[61] and geographic locations.[62] Intersectional identities only compound workers' vulnerability to wage theft.[63] In some reports, impacted workers also described their experiences with wage theft, and other forms of

57. BERKE GALEMBA, *supra* note 8, at 74–75.

58. *Id.* at 73.

59. *See* Bernhardt et al., *Employers Gone Rogue*, *supra* note 3, at 822–23; *see also* BERKE GALEMBA, *supra* note 8, at 34 (explaining that the practice of wage theft is "concentrated in deregulated and restructured industries that rely heavily on the labor of women, people of color, immigrants, and other low-wage workers").

60. WASHINGTON CENTER, *supra* note 46, at 10–11. Latine refers to individuals with Latin American heritage and provides a gender-neutral alternative to Latino or Latina. *Why Latinx/é?*, COLO. STATE U. EL CENTRO, https://elcentro.colostate.edu/about/why-latinx/ [https://perma.cc/LU2Z-7C3E].

61. BERKE GALEMBA, *supra* note 8, at 33–37 (analyzing wage and hour violations by industry).

62. *Id.* at 3 (explaining that day labor hiring sites have expanded across the United States beyond traditional immigrant gateway cities because of increased informalization of employment, higher rates of immigration from Latin America, and economic restructuring); ALEXIS TSOUKALAS, DANIEL J. GALVIN, JANICE FINE & JENN ROUND, RUTGERS SCH. MGMT. & LAB. RELS. & FLA. POL'Y INST., FLORIDA POLICYMAKERS NEED TO REASSESS HOW THE MINIMUM WAGE IS ENFORCED 6 (2021), https://smlr.rutgers.edu/sites/default/files/Documents/Centers/CIWO/fpi_ciwo_wagetheftreport_march2021.pdf [https://perma.cc/9DZ2-85HR] (finding that Black, Latina, and immigrant women in Florida were more likely to face wage theft than their peers).

63. WASHINGTON CENTER, *supra* note 46, at 11 (explaining that Hispanic, non-U.S. citizen workers were four times more likely to experience minimum wage violations than white male citizens and Black, non-U.S. citizen women were 3.7 times more likely to experience wage theft than white male citizens).

exploitation, as targeting them because of their racial identity.[64] Llezlie Green has applied an anti-subordination framework to wage and hour enforcement, precisely because of the intersecting race and class inequities faced by workers harmed by wage theft.[65] The harms inflicted by wage theft cannot be defined merely in economic terms and are closely entrenched with other forms of exploitation and subordination of communities of color and immigrant communities.[66]

The financial precarity faced by impacted workers also affects economic stability more broadly, as wage and hour violations, particularly employers' failure to pay minimum wage, contribute to growing income inequality and wage stagnation.[67] For Black and brown communities that face significant barriers accessing generational wealth,[68] wage theft only further exacerbates these disparities. For communities that face subordination in other ways, pervasive wage theft also imposes dignitary harms on those communities.

This Article uses a worker-centered account of community harm, while others have emphasized harm to the state or have applied a market-focused lens.[69] For example, employers who commit wage theft fail to contribute their part to federal, state, and local welfare programs, in which workers impacted by wage theft are often forced to enroll. Employers who misclassify workers do not pay into

64. DIAZ ET AL., *supra* note 52, at 16 (recounting the experience of a home health worker who believed that the employer took advantage of her and other workers by failing to pay their wages because they were Hispanic); *see also* BERKE GALEMBA, *supra* note 8, at 95 (explaining the nature of the day laborer market, where workers, who are predominantly Latine, are considered interchangeable).

65. Llezlie Green Coleman, *Disrupting the Discrimination Narrative: An Argument for Wage and Hour Laws' Inclusion in Antisubordination Advocacy*, 14 STAN. J. C.R & C.L. 49, 83–86 (2018).

66. *See generally* RUBEN J. GARCIA, CRITICAL WAGE THEORY: WHY WAGE JUSTICE IS RACIAL JUSTICE (2024).

67. Galvin, *supra* note 34, at 325; MANGUNDAYAO ET AL., *supra* note 6, at 11 (describing a "widespread epidemic" of wage theft that "costs workers, their families, and communities billions of dollars each year").

68. *See generally* KEEANGA-YAMAHTTA TAYLOR, RACE FOR PROFIT: HOW BANKS AND THE REAL ESTATE INDUSTRY UNDERMINED BLACK HOMEOWNERSHIP (2019).

69. *See, e.g.*, JANICE FINE & JENN ROUND, UNIV. ILL. CHI. CTR. FOR URB. ECON. DEV., FEDERAL, STATE, LOCAL, AND PRIVATE MODELS OF STRATEGIC ENFORCEMENT AND CO-ENFORCEMENT ACROSS THE U.S. 2 (2021), https://workercenterlibrary.org/wp-content/uploads/2024/11/Federal-State-and-Local-Models-of-Strategic-Enforcement-and-Co-enforcement-Across-the-U.S.pdf [https://perma.cc/GKW3-3PBL] (examining the ripple effect of employers' failure to pay legally required wages, which leaves the state with less payroll and income tax revenue and competitive employers with a disadvantage).

government programs, like workers' compensation, Social Security, or Medicare.[70] As a result, wage theft costs the government millions of dollars annually in lost tax revenue.[71] While state harms may ultimately impact workers affected by wage theft, the community harms as defined herein focus on those directly affecting workers and their communities.[72]

II. CIVIL STRATEGIES AND THE TURN TO THE CRIMINAL SYSTEM

Civil laws and enforcement mechanisms exist to remedy wage theft; however, as discussed in this Section, civil strategies have been inadequate to deter it. Consequently, some policymakers, lawyers, workers' rights advocates, and workers have turned to the criminal system.

A. *Wage and Hour Laws and Civil Legal Enforcement Tools*

Protections against wage theft have existed under federal law for decades. In the mid to late 1930s, Congress enacted legislation to protect workers' basic rights as part of New Deal legislation that created significant social reforms.[73] The Fair Labor Standards Act (FLSA) of 1938 created a mandatory minimum wage[74] and

70. *See, e.g.*, *id.* (explaining that employers who fail to pay legally required wages do not contribute to payroll and income tax revenue that contributes to public assistance programs); U.C. BERKELEY CTR. FOR LABOR RESEARCH & EDUC., *supra* note 35, at 6 (characterizing misclassification by employers as "defunding and defrauding government programs").

71. Lee & Smith, *supra* note 17, at 766–67; BERNHARDT ET AL., BROKEN LAWS, *supra* note 2, at 9.

> When unscrupulous employers break the law and drive down labor standards, they rob families of badly needed money to put food on the table. They rob communities of spending power. They rob state and local governments of vital tax revenues. And they rob the nation of the good jobs and workplace standards needed to compete in the global economy.

Id.

72. Courtlyn G. Roser-Jones offers another form of public harm caused by contractors who commit wage theft. Courtlyn G. Roser-Jones, *Using State and Local Governments' Purchasing Power to Combat Wage Theft*, 80 WASH. & LEE L. REV. 1937, 1945–46 (2024). She argues that, because research shows that contractors who commit wage theft are more likely to deliver a lower-quality product, the quality of goods and services are diminished, and taxpayers must pay more over time to remedy defects. *Id.* at 1946. This form of harm also affects workers and their communities directly and further supports worker-centered strategies described in Part V. *See infra* Part V.

73. *E.g.*, Social Security Act of 1935, ch. 531, 49 Stat. 620 (codified as amended in scattered sections of 42 U.S.C.); *see also* Daniel J. Galvin, *From Labor Law to Employment Law: The Changing Politics of Workers' Rights*, 33 STUD. AM. POL. DEV. 50, 56 (2019) (providing a brief history of the National Labor Relations Act, enacted in 1935).

74. 29 U.S.C. § 206.

designated the maximum number of hours in a given workweek.[75] Other labor laws, specifically the National Labor Relations Act (NLRA), provided workers with collective bargaining rights as the main vehicle for wage improvements, with the FLSA as a backstop and important anti-poverty measure.[76] Despite the groundbreaking nature of New Deal social reforms at the time, these laws nonetheless perpetuated racial inequities.[77] The FLSA excluded workers in industries dominated by Black workers, such as farming and domestic work.[78]

For workers afforded protections under the FLSA, the law created enforcement mechanisms to ensure compliance and to provide an avenue for employees to recover their unpaid wages, if employers failed to comply with wage and hour laws.[79] The Department of Labor (DOL) has authority to bring an enforcement action on behalf of employees.[80] Employees also have a private right of action, and their attorneys may collect fees and costs, should they prevail.[81] The FLSA's collective action mechanism allows a group of workers to sue their employer, though the statute requires workers to opt in to the collective action.[82]

75. *Id.* § 207.

76. Cynthia Estlund, *Rebuilding the Law of the Workplace in an Era of Self-Regulation*, 105 COLUM. L. REV. 319, 328–29 (2005) [hereinafter Estlund, *Rebuilding the Law of the Workplace*] ("Taken together, the New Deal legislation established a floor on some basic economic terms of employment but left most terms and conditions to the newly established regime of collective bargaining or, outside the union sector, to individual contract.").

77. Juan F. Perea, *The Echoes of Slavery: Recognizing the Racist Origins of the Agricultural and Domestic Worker Exclusion from the National Labor Relations Act*, 72 OHIO ST. L.J. 95, 98–99 (2011) (arguing that New Deal legislation capitulated to Southern legislators' demands and preserved white supremacist regimes, which continue to impact workers in specific industries dominated by workers of color).

78. *See id.* at 114, 117 (explaining the intentional exclusion of Black employees from FLSA protections through the use of racially neutral, industry-specific exclusions).

79. 29 U.S.C. § 216. Employees have two years from the last violation to commence an action under the FLSA, or three years, if the employer committed a willful violation. *Id.* § 255. In addition to back wages, meaning the uncompensated wages for work performed, employees can seek an amount equal to the unpaid wages as liquidated damages under the statute, though employers may plead a good faith defense to contest these statutory damages. *See* Martin v. Selker Bros., Inc., 949 F.2d 1286, 1296–97, 1299 (3d Cir. 1991) ("To avoid liability for liquidated damages, the employer must make a showing of good faith and reasonable grounds for its conduct. If the employer fails to carry its burden of demonstrating good faith and reasonable grounds, the award of liquidated damages is mandatory.").

80. 29 U.S.C. § 216(c).

81. *Id.* § 216(b).

82. *Id.*; *see also* Charlotte S. Alexander, *Would an Opt in Requirement Fix the Class Action Settlement? Evidence from the Fair Labor Standards Act*, 80 MISS. L.J. 443, 459 (2010) (explaining the structure and history of the FLSA opt-in requirement).

Over time, in many jurisdictions, states and localities enacted legislation that provided much greater protections than the FLSA.[83] For example, as of January 2026, thirty-four states, territories, and districts have minimum wage rates above the federal minimum wage.[84] States and cities have enacted paid sick leave laws, further protecting workers in low-wage industries who typically do not have these benefits through their employers.[85] States and localities also developed different mechanisms to enforce wage and hour laws.[86] Some cities and states therefore have protections for wage theft, and other labor violations, that are much more expansive than those afforded under the federal laws.

B. *How Civil Enforcement Tools Fall Short*

Despite the various federal, state, and local anti-wage theft laws, wage theft remains a pervasive problem. Workers, advocates, and scholars have provided different explanations as to why employers continue to commit wage theft at such high levels and why they escape any accountability.

One challenge is that wage theft can take many different forms, so there is no one-size-fits-all strategy to achieve compliance and effective enforcement.[87] As illustrated in the examples from the Civil Practice Clinic, workers experiencing wage theft may get paid less than the minimum wage, or employers may fail to pay them for overtime hours worked over forty hours per week. Employers may also commit "off-the-clock" violations, by urging workers to record less time or to clock in and out after security checks, putting

83. Galvin, *supra* note 34, at 325–26 (explaining how state laws evolved to provide greater protection than the FLSA); *see also* Llezlie L. Green, *Wage Theft in Lawless Courts*, 107 CALIF. L. REV. 1303, 1319–20 (2019) (explaining additional protections under state statutes compared to the FLSA).

84. NAT'L CONF. OF STATE LEGISLATURES, STATE MINIMUM WAGES (2026), https://www.ncsl.org/labor-and-employment/state-minimum-wages [https://perma.cc/XB3V-J5W2].

85. *See* FINE & ROUND, *supra* note 69, at 1 (noting that fourteen states, nineteen cities, and three counties had passed paid sick leave laws).

86. Lee & Smith, *supra* note 17, at 775–83 (examining 141 state and local anti-wage theft laws enacted from January 1, 2005, to December 31, 2017). According to Lee and Smith's analysis, seventy-three percent of the laws that they reviewed authorized an administrative agency or court to impose penalties upon a finding that an employer committed wage theft. *Id.* at 779. Creating or enhancing civil penalties was the most common strategy, with almost half of the laws taking this approach. *Id.* Only ten percent of the penalties-related strategies involved authorizing criminal charges against employers for committing wage theft. *Id.*

87. *See* COOPER & KROEGER, *supra* note 6, at 4 (summarizing common forms of wage theft).

on protective equipment, or other necessary tasks for the job.[88] For tipped employees, employers may fail to pay their tips, which, under the current scheme in many jurisdictions, makes up most of their salary. Calculating whether employers are improperly compensating tipped employees can be challenging.[89] Further, employers are increasingly misclassifying workers as independent contractors, instead of employees, thereby exempting these workers from protections under the FLSA and other state wage protections.[90] Because wage theft may take so many different forms, and norms may vary by industry, there is no single policy, law, or enforcement mechanism that resolves all distinct forms of wage theft.

Second, current enforcement models are inadequate to address the epidemic of wage theft across the country. The federal DOL has limited resources and insufficient staffing to protect millions of workers subject to numerous federal statutes.[91] Insufficient funding plagues state and local enforcement agencies as well, even as some jurisdictions develop more expansive protections for workers.[92] Although the DOL has tried different models, complaints directly from workers drive most of its enforcement.[93] Complaint-

88. *E.g.*, Tyger v. Precision Drilling Corp., 78 F.4th 587, 592–94 (3d Cir. 2023) (articulating a test to determine when donning and doffing personal protective equipment is compensable under the FLSA); *see also* Bernhardt et al., *Employers Gone Rogue*, *supra* note 3, at 818 (finding that of 24.8% respondents in study who were at risk of an off-the-clock violation, 70.6% experienced a violation).

89. *See* Drew Desilver, *The Varied Landscape of Minimum Wages and Tip Credits in the U.S.*, PEW RSCH CTR. (Nov. 21, 2023), https://www.pewresearch.org/short-reads/2023/11/21/the-varied-landscape-of-minimum-wages-and-tip-credits-in-the-us/ [https://perma.cc/2BWX-5344] (explaining that the federal minimum wage for tipped employees in $2.13 an hour, with $5.12 of "tip credit" to reach the federal minimum wage and describing the patchwork of state laws governing tipped employees).

90. *See* JOHN SCHMITT, HEIDI SHIERHOLZ, MARGARET POYDOCK & SAMANTHA SANDERS, ECON. POL'Y INST., THE ECONOMIC COSTS OF WORKER MISCLASSIFICATION 2 (2023), https://www.epi.org/publication/cost-of-misclassification/ [https://perma.cc/9GHT-34W3] (explaining the costs of misclassification for workers, such as wage loss, loss of benefits, and lack of employer contributions to social security, Medicare, and unemployment).

91. WASHINGTON CENTER, *supra* note 46, at 12 ("As of May 1, 2020, for example, [the DOL] employed 779 investigators to protect more than 143 million workers, which is significantly fewer than the 1,000 investigators employed in 1948, when the division was responsible for safeguarding the rights of only 22.6 million workers."); U.S. GOV'T ACCOUNTABILITY OFF., GAO-21-13, FAIR LABOR STANDARDS ACT: TRACKING ADDITIONAL COMPLAINT DATA COULD IMPROVE DOL'S ENFORCEMENT 13 (2020) (noting a decline in staffing levels of DOL's Wage and Hour Division between 2010 and 2019).

92. FINE & ROUND, *supra* note 69, at 3 (summarizing surveys from states and cities that enacted recent policies that found twenty-seven percent of states received no additional funding and more than fifty percent of cities had no funding to carry out the new policies).

93. A recent GAO report explained that DOL enforcement is directed more in recent years than in the past, but the complaint-driven model remains the most common. U.S.

based enforcement on its own has proven to be ineffective to protect the workers most vulnerable to wage theft.[94] For complaint-based enforcement to be effective, workers must know their rights, believe relief is accessible, and be willing to come forward to complain when their rights have been violated—a multistep process often out-of-reach for many workers experiencing wage theft.[95] While private enforcement of wage and hour laws has increased considerably, those actions are also driven by workers' willingness to come forward and file an action against their employer.[96] Private attorneys, although they can win attorneys' fees from successful actions, have little incentive to represent workers with relatively low unpaid wages owed, given the small pay off for attorneys, even though the amounts of unpaid wages may be significant for the workers.[97] Private civil litigation is further complicated by the expansion of forced arbitration for workplace disputes.[98] Through

GOV'T ACCOUNTABILITY OFF., *supra* note 91, at 10–11 (finding an increase in FLSA cases initiated by DOL between fiscal years 2012 and 2019).

94. *See* WASHINGTON CENTER, *supra* note 46, at 14–17 (explaining the prevalence of complaint-based enforcement in federal and state wage and hour enforcement and why the model is inadequate); Weil & Pyles, *supra* note 17, at 72 (finding that "a significant number of the industries with the highest levels of noncompliance with FLSA are not associated with nearly as high complaint rates"); FINE & ROUND, *supra* note 69, at 15 ("Complaint-based enforcement tends to embrace an individualized regulatory approach that conceives of each individual case—or worker complaint—as an isolated and idiosyncratic incident.").

95. *See* Lee & Smith, *supra* note 17, at 785–87 (explaining the challenges that workers experiencing wage theft face when "naming" wage theft as an initial step in the complaint process, "blaming" the correct employers, given the realities of fissured workplaces, and "claiming" against an employer, given concerns about the efficacy of taking action and retaliation by employers).

96. Llezlie Green Coleman, *Procedural Hurdles and Thwarted Efficiency: Immigration Relief in Wage and Hour Collective Actions*, 16 HARV. LATINO L. REV. 1, 6 (2013) ("[T]he available data makes clear that the number of [FLSA] cases filed in federal court alone has more than quadrupled in the past 20 years.").

97. Fine & Gordon, *supra* note 4, at 554–55 (noting that most industries at greatest risk of FLSA violations are smaller business, with fewer than twenty employees); *see also* Green, *supra* note 83, at 1330.

> Furthermore, despite the fee shifting statutes that permit the prevailing party to collect attorneys' fees from the employer, workers with small dollar claims are rarely able to secure representation. Legal aid organizations and law school clinics positioned to take cases without concern for the likelihood they will receive attorneys' fees are the exception to that rule.

Id.

98. ALEXANDER J.S. COLVIN, ECON. POL'Y INST., THE GROWING USE OF MANDATORY ARBITRATION 2 (2017), https://www.epi.org/publication/the-growing-use-of-mandatory-arbitration/ [https://perma.cc/X5V6-G798] (finding that more than half of nonunion private-sector employers have mandatory arbitration procedures); MARCHA CHAUDRY, MICHAEL C. DUFF, SIDNEY A. SHAPIRO & THOMAS MCGARITY, PRIVATE COURTS, BIASED OUTCOMES: THE ADVERSE IMPACT OF FORCED ARBITRATION ON PEOPLE OF COLOR, WOMEN, LOW-INCOME AMERICANS, AND NURSING HOME RESIDENTS, CTR. FOR PROGRESSIVE REFORM 6 (2022), https://progressivereform.org/publications/private-courts-biased-outcomes-forced-arbitration-rpt

arbitration, disputes are litigated behind closed doors, and workers and their attorneys are reluctant to pursue claims in arbitration.[99]

Because of ineffective enforcement, violations of wage and hour laws have become normalized in certain industries, particularly those that rely on a low-wage workforce and workers from marginalized groups, such as immigrant workers.[100] In the construction industry, for example, where contracts are awarded to the lowest bidder, employers seek to lower costs, primarily through reducing labor costs and employing strategies that constitute wage theft, like misclassifying employees as independent contractors or paying workers under the table, often for less than the amount to which they are legally entitled.[101] Employers face little incentive to comply with wage and hour laws because of limited enforcement and, even in cases in which employees prevail on an action, employers face relatively minor penalties beyond paying back wages.[102]

Finally, wage theft happens within the context of a broader erosion of labor standards. The decline of unionized workplaces has coincided with fewer protections and rights for workers.[103] With

[https://perma.cc/6Z2R-39Z2] (explaining the disproportionate harm caused by forced arbitration for historically marginalized communities).

99. *See* Estlund, *Mandatory Arbitration, supra* note 16, at 692–700 (describing a significant number of "missing" employment claims that are subject to mandatory arbitration agreements that employees do not file); Hugh Baran & Elisabeth Campbell, *Forced Arbitration Helped Employers Who Committed Wage Theft Pocket $9.2 Billion in 2019 from Workers in Low-Paid Jobs*, NAT'L EMP. L. PROJECT 1 (June 2021), https://www.nelp.org/insights-research/forced-arbitration-cost-workers-in-low-paid-jobs-9-2-billion-in-stolen-wages-in-2019/ [https://perma.cc/Z4DY-7QN6] (estimating the number of wage and hour violations for which employees choose not to assert claims, as they are subject to mandatory arbitration clauses).

100. *See* KIMBERLY BOBO, WAGE THEFT IN AMERICA: WHY MILLIONS OF WORKERS ARE NOT GETTING PAID—AND WHAT WE CAN DO ABOUT IT 8–15 (2009); Bernhardt et. al., *Employers Gone Rogue*, *supra* note 3, at 811 ("[I]n the absence of strong enforcement and penalties, violations of minimum wage and overtime laws can be treated as a form of wage setting at the bottom of the wage distribution.").

101. U.C. BERKELEY CTR. FOR LAB. RSCH & EDUC., *supra* note 35, at 1–3.

102. *See* Estlund, *Rebuilding the Law of the Workplace*, *supra* note 76, at 330 ("Most enforcement actions secure only the back wages owed to employees (if that); that means opportunistic employers risk very little by underpaying employees and hoping—quite realistically—to avoid enforcement, either by inspection or complaint.").

103. *See* Bernhardt et al., *Gloves Off, supra* note 9, at 16–19 (summarizing a decline of regulation of work from 1975 onward); Joy Jeounghee Kim & Skye Allmang, *Wage Theft in the United States: Towards New Research Agendas*, 32 ECON. & LAB. RELS. REV. 534, 537 (2021) (explaining that a decline in union representation has "weakened labour power and minimised its ability to intervene against employers' violations of labour standards"); JOHN SCHMITT, ELISE GOULD & JOSH BIVENS, ECON. POL'Y INST., AMERICA'S SLOW-MOTION WAGE CRISIS 8 (2018), https://www.epi.org/publication/americas-slow-motion-wage-crisis-four-dec

limited bargaining power that unions otherwise provided, workers are left to fend for themselves with regards to demanding higher pay and other workplace protections. Another ubiquitous practice is "fissuring" of the workplace that contributes to the deterioration of workplace standards, protections, and stability.[104] Fissuring involves practices like subcontracting, outsourcing, and offshoring, such that larger employers pass responsibility for labor and employment of much of the workforce to smaller entities.[105] Cleaning staff in hotels for example are employees of a staffing agency, not of the specific hotel where they work every day. Should a member of the cleaning staff experience wage theft, that individual would face challenges in taking legal action against the potentially liable employer, as the hotel may not meet the requirements of a joint employer, and the staffing agency may be a fly-by-night entity making any enforceable judgment nearly impossible.

C. *Criminal Strategies to Address Wage Theft*

The significant limitations of civil strategies and the severity and pervasiveness of wage theft have led some advocates, policymakers, and impacted workers to turn to the criminal legal system. Wage theft criminal strategies have gained momentum.[106] In some jurisdictions, prosecutors have created specific units focused on wage theft and economic justice crimes.[107] States have passed new

ades-of-slow-and-unequal-growth-2/ [https://perma.cc/4N5F-32AC] (attributing wage stagnation over the past four decades to a decline in manufacturing and unionization); U.C. BERKELEY CTR. FOR LAB. RSCH. & EDUC., *supra* note 35, at 2 (examining the correlation of lower rates of unionization and increasingly depressed wages in the U.S. construction industry).

104. *E.g.*, WEIL, *supra* note 18, at 91–92.

105. *Id.*

106. *See, e.g.*, TERRI GERSTEIN, ECON. POL'Y INST., HOW DISTRICT ATTORNEYS AND STATE ATTORNEYS GENERAL ARE FIGHTING WORKPLACE ABUSES 12–13 (2021), https://www.epi.org/publication/fighting-workplace-abuses-criminal-prosecutions-of-wage-theft-and-other-employer-crimes-against-workers/ [https://perma.cc/6BKP-CTTH].

107. *E.g.*, *D.A. Bragg Announces Creation of Office's First "Worker Protection Unit" to Combat Wage Theft, Protect New Yorkers From Unsafe Work Conditions*, MANHATTAN DIST. ATT'Y'S OFF. (Feb. 16, 2023), https://manhattanda.org/d-a-bragg-announces-creation-of-offices-first-worker-protection-unit-to-combat-wage-theft-protect-new-yorkers-from-unsafe-work-conditions/ [https://perma.cc/N8B6-CXNH]; *see also* César F. Rosado Marzán, *Wage Theft as Crime: An Institutional View*, 20 J. L. SOCIETY 300, 300 (2020) (arguing for a specific institutional framework to carry out wage theft criminal prosecutions, which includes dedicated units and police and prosecutors trained in these specific issues, among other factors).

legislation to define wage theft as larceny under the penal code and often to create or enhance criminal penalties for wage theft.[108]

Proponents of this shift have emphasized that criminal penalties and their enforcement are necessary tools to protect workers who experience wage theft. According to them, the criminal system can punish and compel compliance from employers who commit more egregious forms of wage theft by using the threat of incarceration, and, if necessary, carrying out that threat.[109] Criminal penalties carry greater deterrent effects because of the social stigma associated with criminal convictions.[110] The criminal system is also effective because of criminal law's expressive message.[111] Making wage theft a crime communicates that wage theft is wrong and that the state will punish individuals who commit wage theft.[112] "Crime" and "criminal" carry specific weight unmatched by civil enforcement mechanisms.[113]

108. *See infra* Section III.A; Lee & Smith, *supra* note 17, at 774, 779 (noting that the majority of the states that enacted anti-wage theft legislation during the examined period leaned Democratic and finding that ten percent of anti-wage theft laws enacted in the time period examined included criminal penalties).

109. Terri Gerstein & David Seligman, *A Response to "Rethinking Wage Theft Criminalization"*, ONLABOR (Apr. 20, 2018), https://onlabor.org/a-response-to-rethinking-wage-theft-criminalization/ [https://perma.cc/SC2F-BE38] ("The most important reason to employ criminal law tools in certain wage theft cases is that the civil law, while critically important, also has its limits in deterring illegal conduct, responding promptly to abuses, and in punishing chronic wrongdoers."); Hallett, *supra* note 45, at 135 ("But the possibility of criminal penalties, including imprisonment, will send the message to employers that they cannot violate the law and get off with a slap on the wrist."); JUNTA FOR PROGRESSIVE ACTION, INC. & UNIDAD LATINA EN ACCIÓN, A CITY TO MODEL: SIX PROPOSALS FOR PROTECTING PUBLIC SAFETY AND IMPROVING RELATIONSHIPS BETWEEN IMMIGRANT COMMUNITIES AND THE CITY OF NEW HAVEN 12 (2005), https://law.yale.edu/sites/default/files/documents/pdf/Clinics/wirac_CitytoModel.pdf [https://perma.cc/976V-TVS5] ("The threat of imprisonment and the greater social stigma of criminal than civil penalties might induce employers to pay back wages.").

110. *See* Verga, *supra* note 20, at 289 ("The formal use of the 'criminal' label and informal societal perceptions about the penal character of particular actions have important consequences for the kind of social stigma associated with behaviors."); JUNTA FOR PROGRESSIVE ACTION, INC. & UNIDAD LATINA EN ACCIÓN, *supra* note 109, at 12 ("The threat of imprisonment and the greater social stigma of criminal than civil penalties might induce employers to pay back wages.").

111. *See, e.g.*, Hallett, *supra* note 45, at 144 ("Criminalizing conduct, even if penalties remain low, can give rise to stronger social deterrence because of the expressive function of declaring something a criminal act.").

112. Gerstein & Seligman, *supra* note 109; *see also* Hallett, *supra* note 45, at 144.

113. *See* Gerstein & Seligman, *supra* note 109 ("It signals to employers and workers that wage theft causes severe harm, both to private individuals and the public generally, and that society is willing to criminally punish the powerful who take advantage of the vulnerable and marginalized."); Douglas Husak, *The Price of Criminal Law Skepticism: Ten Functions of the Criminal Law*, 23 NEW CRIM. L. REV. 27, 36 (2020) (arguing that a criminal

With regards to the harms inflicted upon communities of color as a result of wage theft, some proponents of wage theft criminalization explicitly recognize the racial and class inequities of the criminal legal system and the harms inflicted by the criminalization of poverty.[114] These proponents believe that the criminal system can be harnessed to prosecute employers who hold positions of power over workforces primarily composed of people of color and immigrants.[115] Prosecuting presumably wealthy employers is one way to use the power of the system to benefit marginalized communities, even while these same communities remain the target of that very system.[116]

III. STATE CRIMINAL PENALTIES AND THEIR ENFORCEMENT

To determine whether and how the criminal system remedies the spheres of harm identified in Part I, a closer examination of wage theft criminal strategies is essential. To do so, I analyzed labor and penal codes across the country to determine what criminal penalties, if any, existed for individuals who commit wage and hour violations. This Part provides an overview of the criminal statutory penalty provisions in all fifty states, including Washington, D.C.,[117] that focus specifically on wage theft.[118] Then, using

judgment of guilt "communicates a message other legal judgments lack: it authoritatively labels the defendant as a criminal, with all of the resonance and social meaning this term conveys").

114. *See* BERKE GALEMBA, *supra* note 8, at 127 (explaining advocates' debate over a criminalization measure in Colorado legislation). *See generally* ELIZABETH HINTON, FROM THE WAR ON POVERTY TO THE WAR ON CRIME: THE MAKING OF MASS INCARCERATION IN AMERICA (2016).

115. Gerstein & Seligman, *supra* note 109.

116. *See* Levin, *supra* note 21, at 1479–80 (explaining the view of criminalization proponents as "'level[ing]-up' punishment—to treat the richer, more powerful, or more privileged defendant more like the poorer, less powerful, or less privileged defendant").

117. The FLSA includes a criminal penalty mechanism. 29 U.S.C. § 216(a) (providing that a conviction could result in a fine of not more than $10,000 or imprisonment not more than six months, but the employer can only be imprisoned if the employer has been previously convicted of a criminal violation of the FLSA). Criminal penalties under the FLSA, however, are not the focus of this article as the shift to criminal strategies for wage theft has occurred primarily at the state and local, not federal, level.

118. These statutes typically include some or all of the following: failure to pay wages, failure to pay minimum wage, and failure to pay overtime. I do not examine statutes criminalizing a failure to pay the prevailing wage or other criminal statutes under which prosecutors could charge wage theft-related offenses, such as fraud. I also exclude worker misclassification statutes, even though they could be considered anti-wage theft provisions; they often fall under statutory schemes pertaining to workers' compensation. *E.g.*, CONN. GEN. STAT. § 31-288 (2025) (imposing civil and criminal penalties for noncompliance with insurance requirements).

data from public records requests, publicly available court documents, and press releases, it presents a descriptive account of enforcement in four jurisdictions with different statutory schemes: Connecticut, Minnesota, New York, and Washington, D.C.

A. *State Statutory Criminal Penalties*

Thirty-seven states, including Washington, D.C., have criminal penalties for wage theft.[119] These provisions appear in one of two places: labor and employment statutes or criminal statutes. In the latter category, some jurisdictions have modified their criminal code for larceny-related offenses to incorporate and define wage theft.[120] Other jurisdictions have attached criminal penalties to wage and hour violations listed in labor and employment statutes.[121] Some state labor laws do not specify the level of intent required. In Connecticut and Pennsylvania, for example, where the statutes do not provide an intent standard, courts have interpreted them to be strict liability statutes.[122] In contrast, other states, like Colorado and California, explicitly require intentional or willful violations on the part of the employer to trigger criminal penalties.[123] Thus, in addition to a higher burden of proof inherent in criminal proceedings, which require evidence to be shown beyond a reasonable doubt,[124] heightened intent standards in some criminal

119. The states that do not have criminal penalties for wage theft, as defined in this article, are: Alabama, Arizona, Arkansas, Florida, Georgia, Idaho, Iowa, Kansas, Kentucky, Louisiana, Maine, North Carolina, South Carolina, and Vermont. *See* App. Figure 1.

120. *E.g.*, N.Y. PENAL LAW § 155.05(2)(f) (2025); MINN. STAT. § 609.52 (2025).

121. *See, e.g.*, 43 PA. STAT. AND CONS. STAT. ANN. § 260.11a(b) (West 2004) (including possible criminal penalties for violations of Pennsylvania's Wage Payment and Collection Law); VA. CODE ANN. § 40.1-29(E) (Cum. Supp. 2025) (establishing criminal penalties provision for employers "who willfully and with intent to defraud" fail to pay wages as required under Virginia's wage statutes).

122. *See* State v. Merdinger, 655 A.2d 1167, 1171 (Conn. App. Ct. 1995) ("The state correctly contends that this statute is one of strict criminal liability designed to eradicate the evil of nonpayment of wages even though those without an evil purpose might end up ensnared in its net."); State v. Nanowski, 746 A.2d 177, 182 (Conn. App. Ct. 2000) (rejecting defendant's claim that criminal penalty provisions for wage theft were unconstitutional as applied to him because the heightened penalties of the 1993 amendments implied a mens rea requirement); Commonwealth v. Bross, 15 Pa. D. & C.3d 229, 239 (C.P. Bucks County 1980) ("Both the literal language of the [Wage Payment and Collection Law] and the subject matter of the prohibition indicate a legislative intent to dispense with the element of mens rea.").

123. *See* COLO. REV. STAT. § 8-4-114(2) (2025) (providing for criminal penalties where an employer "willfully refuses to pay wages or compensation"); CAL. PENAL CODE § 487m (2025) (criminalizing intentional failure to pay wages).

124. *See In re* Winship, 397 U.S. 358, 362–65 (1970); *see also* U.S. CONST. amend. V.

statutes require an additional showing, intent, that civil wage theft statutes do not require.[125]

In some jurisdictions, criminal penalties for wage theft have existed for decades.[126] Over time, states have sought to enhance criminal penalties for wage theft. New York's Unpaid Wages Prohibition Act, which became effective in 1997, enhanced the criminal penalty provision by making a second wage theft offense a felony.[127] In Connecticut, the wage theft provisions carried possible terms of imprisonment up to thirty days until 1993, when the legislature significantly increased the possible term of imprisonment to five years, where it remains today.[128]

Unlike the 1990s and periods prior, the past decade has seen the rise of movements seeking to end mass incarceration and the carceral state more broadly.[129] Nonetheless, at the same time, various states have sought to enhance criminal penalties for wage theft.[130] For example, in 2019, Minnesota passed an anti-wage theft law in a special session that created a new offense under the penal code

125. In an interview with one prosecuting attorney, the burden of proof in criminal cases, and the evidence required to meet it, was identified as a significant challenge to prosecute wage theft criminally. Interview with Prosecuting Attorney (Dec. 2, 2024) (on file with author). Civil enforcement further benefits from the burden shifting framework articulated by the Supreme Court in *Anderson v. Mt. Clemens Pottery Co.*, 328 U.S. 680, 687–88 (1946), where courts may rely on "sufficient evidence" provided by the employee of the unpaid hours worked where the employer fails to maintain adequate and accurate records.

126. *E.g.*, 1978 Conn. Acts 783 (Reg. Sess.) (creating criminal penalties for wage theft under CONN. GEN. STAT. § 31-71g (1978) in 1978); Pennsylvania Wage Payment and Collection Law, P.L. 637, No. 329 (1961) (codified as amended at 43 PA. CONS. STAT. § 260.1 (2025)).

127. Unpaid Wages Prohibition Act, 1997 N.Y. Laws Ch. 605 (S. 5071-C) (codified at N.Y. LAB. LAW § 198-a (1997)).

128. 1993 Conn. Legis. Serv. P.A. 93-392 (West) (enhancing wage theft criminal penalties to class D felony); CONN. GEN. STAT. § 53a-35a(8) (2025) (class D felony carries possible maximum sentence of five years). Under the current provision, the maximum period of imprisonment is up to five years, if the total amount of unpaid wages exceeds $2,000; one year, if the total amount of unpaid wages is between $1,000 and $2,000; and six months, if unpaid wages total between $500 and $1,000. §§ 31-71g, 31-69 (2025).

129. For anti-carceral advocates and scholars, the early 1990s marks a significant period in the rise in mass incarceration. Between 1990 and 1995, all states, with the exception of Maine, substantially increased their prison populations. *See, e.g.*, ASHLEY NELLIS, THE SENTENCING PROJECT, MASS INCARCERATION TRENDS 1 (2024), https://www.sentencingproject.org/app/uploads/2024/05/Mass-Incarceration-Trends.pdf [https://perma.cc/6YH4-G8LA]. In his work, Levin situates the recent growth in wage theft criminalization alongside "the most vital contemporary movements to confront structural inequality: the fight to end mass incarceration." Levin, *supra* note 21, at 1430.

130. *See generally* Benjamin Levin & Kate Levine, *Redistributing Justice*, 124 COLUM. L. REV. 1531 (2024) (examining progressives' continued support for carceral systems, particularly in areas in which defendants appear as powerful and victims as especially vulnerable, such as economic crimes like wage theft or hate crimes).

defining wage theft as theft.[131] This law progressively increased potential penalties as the value of the alleged unpaid wages rose.[132] Similarly, in 2022, Delaware created a specific theft offense for wage theft in its criminal code.[133] For offenses involving the maximum unpaid wages, $100,000 or more, the possible sentence is two to twenty-five years.[134] In 2023, New York enacted legislation to define wage theft as larceny under its penal code.[135] Similar to Delaware and Minnesota, charging levels vary based on larceny penalties, ranging from petit larceny, which carries a maximum possible sentence of 364 days,[136] to grand larceny in the first degree for stolen property that exceeds $1,000,000, with a possible maximum sentence of twenty-five years.[137] New York, Delaware, and Minnesota are not alone in enacting greater criminal penalties for wage theft, though other states increased punishments to a lesser degree. In 2022, California enhanced its criminal penalties for wage theft by defining the "intentional theft of wages" of $950 from one employee, or $2,350 total from two or more employees, as "grand theft."[138] In these circumstances, grand theft carries a possible period of incarceration of up to three years.[139]

Although penalties vary greatly across jurisdictions, there are identifiable patterns. All of the states with criminal penalty provisions include some form of monetary penalty as possible

131. 2019 Minn. Laws 49, 52 (codified at MINN. STAT. § 609.52, subd. 2(a)(19) (2025)).

132. For offenses involving more than $35,000 of unpaid wages, individuals face up to twenty years imprisonment, a fine of up to $100,000, or both. MINN. STAT. § 609.52, subd. 3(1) (2025). For wage theft offenses involving $500 or less, individuals convicted face up to ninety days imprisonment, a fine of up to $1,000 or both. *Id.* § 609.52, subd. 3(5).

133. 83 Del. Laws, ch. 443 (2022) (codified at DEL. CODE ANN. tit. 11, § 841D (2026)).

134. DEL. CODE ANN. tit. 11, § 841(c)(3) (2026) ("Where the value of the property received, retained or disposed of is $100,000 or more, theft is a class B felony."); *id.* § 4205(b)(2) (imposing a term of incarceration of two to twenty-five years for class B felonies).

135. 2023 N.Y. Laws 1004 (codified at N.Y. PENAL LAW § 155.05(2)(f) (2025)).

> A person obtains property by wage theft when such person hires a person to perform services and the person performs such services and the person does not pay wages, at the minimum wage rate and overtime, or promised wage, if greater than the minimum wage rate and overtime, to said person for work performed.

Id.

136. N.Y. PENAL LAW §§ 155.25, 70.15(1) (2025).

137. *Id.* §§ 70.00(2)(b), 155.42 (2025).

138. 2021 Cal. Stat. 5526 (codified at CAL. PENAL CODE § 487m(a) (2026)).

139. CAL. PENAL CODE §§ 489(c)(1), 1170(h) (2026).

punishment.[140] Few explicitly specify the amount that workers, or victims in the case of the criminal system, may recover.[141] That is not to say that other statutory provisions or discretion granted to sentencing judges do not allow for victim compensation or restitution; the specific wage theft provisions do not explicitly provide for it.[142] More frequently, the statutory provisions identify administrative penalties or fines, which presumably remain with state institutions.[143]

Of the thirty-seven states with wage theft criminal penalties, thirty-one provide for incarceration as possible punishment.[144] The majority of states with criminal penalties classify violations as misdemeanors, which typically carry periods of possible incarceration not to exceed six months or one year, depending on the jurisdiction.[145] However, ten states classify wage theft as a felony if the amount of unpaid wages exceeds a certain threshold.[146] Depending

140. *E.g.*, HAW. REV. STAT. § 388-10(b)(1) (2025) (setting minimum monetary penalty for wage theft at $500 per offense); N.Y. LAB. LAW § 198-a(1) (2025) (setting maximum possible monetary penalty for felony wage theft at $20,000).

141. *But see* DEL. CODE ANN. tit. 11, § 841(d) (2026) (stating that, for theft offense convictions, "the sentencing judge shall require full restitution to the victim for any monetary losses suffered"); MONT. CODE ANN. § 39-3-206(1) (2024) ("A penalty must also be assessed against and paid by the employer to the employee in an amount not to exceed 110% of the wages due and unpaid.").

142. *See, e.g.*, HAW. REV. STAT. § 706-640(2) (2025) (noting that mandatory fines will be reduced only in certain circumstances, like when payment of fines may prevent the defendant from making restitution, without defining further what restitution may entail); MO. REV. STAT. § 558.004(1) (2025) ("The court shall not sentence an offender to pay a fine in any amount which will prevent him or her from making restitution or reparation to the victim of the offense.").

143. *See, e.g.*, MINN. STAT. § 609.52, subd. 3 (2025) (stating possible sentences, which include incarceration and fines, depending on the amount of property stolen).

144. Maryland, Mississippi, Nebraska, New Hampshire, Tennessee, and West Virginia make wage theft a misdemeanor offense but do not include the possibility of imprisonment as a criminal penalty. *See* MD. CODE ANN., LAB. & EMPL. § 3-508(c) (2025); MISS. CODE ANN. § 71-1-53 (2025); NEB. REV. STAT. § 48-1206(2) (2025); N.H. REV. STAT. ANN. § 275:52 (2025); TENN. CODE ANN. § 50-2-103(h)(2)(i) (2025) (discussing the penalty for violations within private employments); W. VA. CODE § 21-5C-7(c) (2026). Mississippi's statute is limited to corporations with over fifty employees engaged in manufacturing that fail to pay employees in full. MISS. CODE ANN. § 71-1-35 (2025).

145. *E.g.*, 820 ILL. COMP. STAT. 105/11(b) (2026); 730 ILL. COMP. STAT. 5/5-4/5-60; MICH. COMP. LAWS §§ 408.484, 408.485 (2025); MONT. CODE ANN. §§ 39-3-206(1), 61-5-307 (2025); *see also* Sandra G. Mayson & Megan T. Stevenson, *Misdemeanors by the Numbers*, 61 B.C. L. REV. 971, 990 (2020) (finding wide variation in the maximum carceral sentence for misdemeanors in the jurisdictions examined).

146. The states include California, Colorado, Connecticut, Delaware, Hawaii, Minnesota, New York, Rhode Island, Texas, and Virginia. *See* App. Figure 2. New Jersey defines "the crime of pattern of wage nonpayment" as knowingly committing wage and hour violations on two or more prior occasions as a crime of the third degree, which carries a potential sentence of three to five years. N.J. STAT. ANN. §§ 34:11-58.6, 2C:43-6(a)(3) (2025).

on the state penalty scheme for felonies, a felony conviction triggers a potential period of incarceration ranging anywhere from three months to one year[147] to life in prison.[148] Therefore, in jurisdictions in which wage theft may be charged as a felony, the possible prison sentence is extreme.

For non-citizen defendants, potential immigration consequences of wage theft convictions are also severe. Fifteen states have wage theft criminal penalties that, if defendants are sentenced to one year of incarceration, they may be deportable for having an aggravated felony conviction,[149] a term of art in immigration law.[150] It does not matter if that period of incarceration is suspended.[151] An aggravated felony conviction has dire consequences for noncitizens—it subjects them to mandatory detention[152] and bars access to common forms of immigration relief.[153] Some states have attempted to mitigate the severe consequences of such convictions by reducing the maximum sentence for certain larceny offenses, but the reduction only applies to very minor offenses.[154]

147. *E.g.*, CONN. GEN. STAT. § 31-71g (2025) (setting possible sentence for wage theft between three months and one year of imprisonment); VA. CODE ANN. § 40.1-29(E) (Cum. Supp. 2025) (providing an employer may be guilty of a class 6 felony for wage theft in certain circumstances); VA. CODE ANN. § 18.2-10(f) (Cum. Supp. 2025) (imposing a term of imprisonment between one and five years for class 6 felonies tried before a jury).

148. TEX. PENAL CODE ANN. §§ 31.04(d-3)(1), (e)(7) (West 2025) (criminalizing taking of wages under theft of services provision in penal code and categorizing an offense involving services stolen valued at $300,000 or more as a felony in the first degree); *id.* § 12.32(a) (setting possible sentence for felony in first degree at a range between "for life or for any term of not more than 99 years or less than 5 years").

149. Those states include California, Colorado, Connecticut, Delaware, Hawaii, Massachusetts, Minnesota, New Jersey, New Mexico, New York, Oklahoma, Oregon, Rhode Island, Texas, and Virginia. *See* App. Figure 3.

150. 8 U.S.C. § 1101(a)(43)(G) (defining an aggravated felony as a theft or burglary offense for which the term of imprisonment is at least one year).

151. *Id.* § 1101(a)(48)(B).

152. *See id.* § 1226(c)(1)(B) (mandating detention for noncitizens with aggravated felony convictions).

153. *See id.* § 1158(b)(2)(A)–(C) (making individuals with aggravated felony convictions ineligible for asylum); *id.* § 1229b(a)(3) (stating that lawful permanent residents are ineligible for cancellation of removal, a form of deportation relief, if they have an aggravated felony conviction).

154. For example, in Minnesota, the maximum period of imprisonment for theft of property valued between $500 and $1,000 is 364 days. MINN. STAT. § 609.52, subd. 3(4) (2025). New York has a similar provision. N.Y. PENAL LAW § 70.15(1) (2025).

B. *Criminal Penalties Enforcement*

Because of the wide variation in criminal penalties for wage theft across states, this Section provides a descriptive account of publicly available information[155] in four jurisdictions with different statutory schemes: Connecticut, Minnesota, New York, and Washington, D.C.[156] This Section focuses on the enforcement of criminal penalties for wage theft, as defined above, and does not examine prosecutions under other criminal laws, like fraud, that could be considered wage theft.[157] It also limits its analysis to the prosecution of individuals who face penalties like incarceration and does not comprehensively explore prosecutions of corporate entities.

From May 2014 to May 2024, Washington, D.C., had no recorded convictions under the identified statutory provisions.[158] Since the passage of Minnesota's 2019 bill, only one individual has been criminally convicted under the statute.[159] That individual was represented by a public defender, a service provided to those who are low income and unable to afford a private attorney.[160] The conviction resulted in a 180-day suspended sentence, twenty-one days of

155. I analyzed data made publicly available through court administration websites that provided aggregate conviction data based on statutory offense, public records requests, and press releases and news articles from prosecutors' offices.

156. These four jurisdictions were selected because of the varied statutory schemes and the time period in which these schemes were implemented. Connecticut and Washington, D.C., represent smaller jurisdictions with criminal strategies for longer periods, nearly fifty decades and over ten years, respectively. New York and Minnesota, by contrast, implemented enhanced criminal penalties by incorporating wage theft into their penal codes as a felony fairly recently. While the data is limited to these four jurisdictions, these jurisdictions represent different approaches to wage theft and allow for consideration of fluctuations in enforcement over time.

157. For case examples of criminal prosecutions involving wage theft that were charged under criminal statutes other than larceny-related laws, see GERSTEIN, *supra* note 106, at 33–35.

158. Letter from DC Superior Court to author, Public Records Request (June 21, 2024) (on file with author).

159. There were four other charges filed under the Minnesota wage theft statute; however, none of them resulted in a conviction. E-mail from Mike Buttgereit, Public Data Specialist, Court Research Office, to author, Data Request (July 16, 2024) (on file with author).

160. Case Details (Register of Actions) for *State v. Alexander*, 27-CR-22-3391 (Minn. Dist. Ct. Hennepin Cnty. Nov. 17, 2022), MINNESOTA COURT RECORDS ONLINE (MCRO), https://mncourts.gov/access-case-records/mcro [https://perma.cc/999J-FRUH] (follow "Access MCRO" hyperlink; then click "Yes, I Accept" under "Terms and Conditions"; then click "Case Number" under "Case Search"; then search "Enter Case Number (Required)" field for "27-CR-22-3391"; then follow "View Case Details" hyperlink in box titled "Case Number: 27-CR-22-3391").

time served in the county workhouse,[161] one year on probation, and a small administrative fine.[162]

Connecticut had a more robust data set of criminal convictions for wage theft spanning from 2000 to 2024, though the data revealed that convictions under these statutes were uncommon.[163] In total during this time period, sixty-six defendants were convicted for failure to pay wages under General Statutes of Connecticut section 31-71g, most recently in 2019, and twelve for failure to pay a minimum fair wage under section 31-69, most recently in 2011.[164] For convictions under section 31-71g, the provision more frequently charged, seventy-two percent of the sentences imposed imprisonment as a penalty.[165] Those sentences were often suspended and subject to probation for the suspended period, so twenty percent of total defendants convicted under section 31-71g served prison time. For convictions under section 31-69, no defendant served a period of imprisonment,[166] though fifty-eight percent received a suspended sentence with probation.[167] Public information is not available with regards to the underlying facts of each conviction, the characteristics of the defendants, beyond general identifiers for race,[168] or the workers from whom they stole wages. While the underlying facts are not known, the data suggests that prosecutions of over a quarter of these individual defendants involved allegations of relatively low amounts of unpaid wages. Three defendants were convicted of a single count involving less than $500 dollars; nine for a single count involving between $500 and $1,000; and ten for a single count involving between $1,000 and $2,000.[169] Though none of these defendants served periods of imprisonment,

161. *See* Kim Hyatt, *What Does It Mean When Minnesota Courts Sentence Offenders to 'The Workhouse'?*, STAR TRIB. (Jan. 5, 2024, 2:58PM), https://www2.startribune.com/workhouse-corrections-incarceration-sentence-history/600332594/ [https://perma.cc/CR88-AW2L] (explaining what a sentence to a workhouse means).

162. Order, Warrant of Commitment, *State v. Alexander*, 27-CR-22-3391 (Minn. Dist. Ct. Hennepin Cnty. Nov. 17, 2022).

163. E-mail from Joseph P. Greelish, Director, Performance Management, Quality Assurance and Judicial Branch Statistics, Connecticut Judicial Branch, to Alia Al-Khatib, Responses to Public Records Requests (May 15, 2024, and June 3, 2024) (on file with author).

164. *Id.*

165. *Id.*

166. This analysis does not consider subsequent probation violations that may have led to incarceration and only reviews incarceration stemming from the initial sentencing.

167. E-mail from Joseph P. Greelish, *supra* note 163.

168. Most defendants convicted under either statute were identified as white, with three defendants identified as Black, three as Hispanic, and one as Native. *Id.*

169. E-mail from Joseph P. Greelish, *supra* note 163.

they nonetheless faced the consequences of a criminal conviction in cases that were not especially egregious, at least when considering the amount stolen.

Despite the relative ease of convicting under Connecticut's strict liability wage theft statutes, in any given year in this period, no more than seven defendants were convicted for failure to pay wages[170] and for failure to pay a minimum fair wage.[171] As of June 2024, there have been no criminal convictions under either statute in five years.

In New York, I examined public information available in the form of press releases, along with related news articles and court documents. Across various administrations, the New York Attorney General's Office has been active in pursuing criminal and civil enforcement against wage theft. Because of the time span of enforcement,[172] the press releases from this office are useful in illustrating enforcement approaches over time. From 2012 to 2024, based on publicly available press releases only,[173] the Attorney General criminally prosecuted forty-six individuals for wage theft-related offenses. The prosecutions focused on industries that, as discussed above, have high rates of wage theft, such as

170. *Id.*; *see also* CONN. GEN. STAT. § 31-71g (2025).

171. E-mail from Joseph P. Greelish, *supra* note 163; *see also* CONN. GEN. STAT. § 31-69 (2025).

172. In 2023, the Manhattan District Attorney created a Worker Protection Unit. *D.A. Bragg Announces Creation of Office's First "Worker Protection Unit" to Combat Wage Theft, Protect New Yorkers from Unsafe Work Conditions*, MANHATTAN DIST. ATT'Y'S OFF. (Feb. 16, 2023), https://manhattanda.org/d-a-bragg-announces-creation-of-offices-first-worker-protection-unit-to-combat-wage-theft-protect-new-yorkers-from-unsafe-work-conditions/ [https://perma.cc/QD3Y-E68Y]. However, given the recent creation of the unit, the focus of the descriptive analysis is on the New York Attorney General's Office cases.

173. The press releases included contain the phrase "wage theft" or "unpaid wages" in the context of a criminal prosecution reported by the office. *See Press Releases*, N.Y. STATE ATT'Y GEN., https://ag.ny.gov/press-releases [https://perma.cc/ZC6G-MN3L]. For that reason, some of the prosecutions detailed in the press releases involve prevailing wage violations or fraud-related offenses, otherwise not included in other parts of the data analysis. In public communications, the office identified them as prosecutions for "wage theft," so they have been included in this Section.

construction,[174] food processing,[175] home health care,[176] and car washes.[177] For the press releases that reported about convictions, the office obtained convictions through a guilty plea in all cases. Of the forty-six individuals criminally prosecuted for wage theft-related offenses, a little over half were against defendants with surnames of Latine, East Asian, Southeast Asian, or African descent. Publicly available documents confirm that at least some individuals convicted were immigrant employers.[178]

Where incarceration was imposed as a penalty, which occurred in twenty percent of the New York cases examined, the press releases included "jail time" or "jail sentence" in the title of the press release.[179] Under Attorney General Eric Schneiderman, the office's

174. *See* Press Release, N.Y. State Att'y Gen., A.G. Schneiderman Announces Conviction and Sentencing of Construction Company Owner and Subcontractor for Failing to Pay More than $100k in Wages (Oct. 2, 2015), https://ag.ny.gov/press-release/2015/ag-schneiderman-announces-conviction-and-sentencing-construction-company-owner [https://perma.cc/27MB-WWND]; Press Release, N.Y. State Att'y Gen., A.G. Underwood Announces Arrest of WWJ Construction, Inc. Owner for Failure to Pay Workers over $29K in Wages (Aug. 30, 2018), https://ag.ny.gov/press-release/2018/ag-underwood-announces-arrest-wwj-construction-inc-owner-failure-pay-workers-over [https://perma.cc/E9U2-RZGG].

175. *See* Press Release, N.Y. State Att'y Gen., Acting A.G. Underwood Announces Guilty Pleas and Sentencing of Westbury Food Processing Plant Owners for Stealing over $120K from Workers (May 22, 2018), https://ag.ny.gov/press-release/2018/acting-ag-underwood-announces-guilty-pleas-and-sentencing-westbury-food [https://perma.cc/PYM6-CXU7].

176. *See* Press Release, N.Y. State Att'y Gen., A.G. Schneiderman Announces Jail Time for Peekskill Home Health Care Agency Owner Convicted of Wage Theft (Sept. 27, 2017), https://ag.ny.gov/press-release/2017/ag-schneiderman-announces-jail-time-peekskill-home-health-care-agency-owner [https://perma.cc/ETD3-4GQE].

177. *See* Press Release, N.Y. State Att'y Gen., A.G. Schneiderman Secures Jail Sentence for Bronx Car Wash Owner Who Underpaid Workers (July 16, 2012), https://ag.ny.gov/press-release/2012/ag-schneiderman-secures-jail-sentence-bronx-car-wash-owner-who-underpaid-workers [https://perma.cc/9WR2-6MMS].

178. Plea Agreement, Sec'y of Lab. v. BMY Foods Inc., 1:15-cv-05428 (S.D.N.Y July 15, 2015), https://static1.squarespace.com/static/577e9d93b3db2b9290cd7005/t/5a5d1ea8c83025289abd9ff2/1516052137628/Plea+Agreement+—+BMY+Foods+Inc+FILED.pdf [https://perma.cc/6YJR-XTAW] (including language advising the defendant of possible immigration consequences of plea and his understanding that such consequences would be imposed in a separate proceeding before immigrant authorities); Bill Heltzel, *Home Health Care Operator Pleads Guilty to Wage Theft*, WESTFAIR BUS. J. (Feb. 20, 2022), https://westfaironline.com/crime/home-health-care-operator-pleads-guilty-to-wage-theft/ [https://perma.cc/7ABH-K7BL] (documenting defendant's immigration story from Nigeria and his challenges with the criminal case).

179. *E.g.*, Press Release, N.Y. State Att'y Gen., A.G. Schneiderman Obtains Jail Sentence for Owner of Movie Theater Cleaning Company That Underpaid Workers (Jan. 17, 2014), https://ag.ny.gov/press-release/2014/ag-schneiderman-obtains-jail-sentence-owner-movie-theater-cleaning-company [https://perma.cc/2UFV-VMVX]; Press Release, N.Y. State Att'y Gen., A.G. Schneiderman and U.S. Department of Labor Announce Jail Time for Bronx Papa John's Franchisee Convicted of Wage Theft (Nov. 16, 2015), https://ag.ny.gov/press-release/2015/ag-schneiderman-and-us-department-labor-announce-jail-time-bronx-papa-johns [https://perma.cc/DRZ3-NKC3].

press releases focused more on emphasizing incarceration as a penalty.[180] Recent press releases under Attorney General Letitia James, who took over as Attorney General in 2019, have shown a shift in criminal prosecutions. The office has highlighted prosecutions against entities, not individuals,[181] as well as civil settlements, often involving collaborations with worker centers.[182] These press releases illustrate how prosecutors may take distinct approaches to enforcement, even when operating under the same set of laws and within the same state legal institutions.

IV. CRIMINAL SYSTEM'S FAILURE TO REDRESS SPHERES OF HARM

This Section revisits the three distinct harms inflicted by wage theft—individual, workplace, and community—and argues that the criminal system has failed to remedy these distinct spheres of harm as experienced by impacted workers. While acknowledging that the system in some instances may remedy specific harms for which workers seek justice, like recovering back wages in the form of restitution, it argues that the way in which the criminal system seeks to redress harms further entrenches practices detrimental to marginalized communities, like those most affected by wage theft.

A. *Individual Harms*

Proponents of wage theft criminalization agree that engaging with the criminal system fulfills the expressive function that wage theft is wrong. As criminal law scholars critical of the expressive function of criminal law have argued, however, the expressive message of criminal law requires enforcement, and, therefore, it relies

180. *See, e.g.*, N.Y. State Att'y Gen., A.G. Schneiderman Announces Jail Time for Peekskill Home Health Care Agency Owner Convicted of Wage Theft, *supra* note 176.

181. *See, e.g.*, Press Release, N.Y. State Att'y Gen., Attorney General James Recovers $300,000 in Unpaid Wages for New York City Nail Salon Workers (Aug. 16, 2023), https://ag.ny.gov/press-release/2023/attorney-general-james-recovers-300000-unpaid-wages-new-york-city-nail-salon [https://perma.cc/5WXH-JRHQ] (announcing settlement and criminal conviction requiring defendant nail salons to pay $300,000 in restitution, dissolve improperly registered corporate entities, and submit to monitoring by the Attorney General's Office for three years).

182. *See, e.g.*, Press Release, N.Y. State Att'y Gen., Attorney General James Recovers $90,000 in Stolen Wages for Queens Laundry Workers (Oct. 18, 2022), https://ag.ny.gov/press-release/2022/attorney-general-james-recovers-90000-stolen-wages-queens-laundry-workers [https://perma.cc/S2ND-EPJC] (noting collaboration with Laundry Workers Center).

entirely on the discretion of actors in the system.[183] While the passage of a law providing for severe penalties for wage theft may send a message, the limited enforcement of that law may undermine that message.[184] In jurisdictions in which a criminal penalty provision exists with no record of enforcement—and therefore no benefit in the form of restitution for workers—the expressive message on its own fails to remedy one basic but essential objective for workers: recovering the wages they are owed.

When enforced, criminal penalties did remedy workers' financial harm, narrowly construed, in many cases. In criminal enforcement that resulted in a conviction, restitution was regularly ordered.[185] In all of the cases resulting in a publicly available sentence stated in the New York Attorney General's press releases, employers paid some form of restitution.[186] That amount typically equaled the amount of wages stolen from the workers, and another amount was typically paid to the state.[187] In cases in which the employer did not, or could not, pay the mandated restitution, the employer then faced incarceration.[188] Although criminal outcomes achieve the basic goal of obtaining back wages owed to workers in many cases, other outcomes, like administrative penalties and incarceration of individual employers, do little to serve workers directly. Further,

183. Levin, *supra* note 21, at 1473–74; *see also* William J. Stuntz, *The Pathological Politics of Criminal Law*, 100 MICH. L. REV. 505, 521–22 (2001) (describing a "recurring problem" with criminal law's expressive function:

> [O]nce legislators speak, once a crime is formally defined, police and prosecutors face the following choice — *reinforce* the message by enforcing the new law, *negate* the message by leaving the law unenforced, or *revise* the message by enforcing it only in certain kinds of cases or against certain kinds of defendants.

Id.

184. Avlana Eisenberg, *Expressive Enforcement*, 61 UCLA. L. REV. 858, 869, 899–901 (2014) (explaining the scrambled expressive message of hate crime legislation where prosecutors send a message through enforcement decisions).

185. The single Minnesota conviction only imposed fines against the defendant and did not order any payment of restitution. Sentencing Order, *State v. Alexander*, 27-CR-22-3391 (Minn. Dist. Ct. Hennepin Cnty. Nov. 17, 2022).

186. *See supra* Section III.B.

187. *E.g.*, Plea Agreement, New York v. Double "O" Landscaping Inc. (June 23, 2015) (ordering company to pay $13,032 in restitution, which was equal to the amount of wages stolen from workers, and $19,856.64 to the New York State Department of Labor, Unemployment Insurance Division).

188. *E.g.*, Press Release, N.Y. State Att'y Gen., A.G. Schneiderman Announces Jail Sentence of Restaurant Owner for Failing to Pay $47,000 in Minimum Wage and Overtime (Mar. 28, 2017), https://ag.ny.gov/press-release/2017/ag-schneiderman-announces-jail-sentence-restaurant-owner-failing-pay-47000 [https://perma.cc/EP5N-R2F3] (announcing additional $1,000 fine and sentence to six months in jail for restaurant owner after she failed to pay the remaining $26,000 in restitution).

for workers who have waited for significant periods to recover their wages, receiving that amount or less does not redress the full scope of individual harm that they experienced.[189] These workers may have faced longer term consequences, such as eviction or consumer debt, and recovering what one was owed months or even years later does not remedy those harms.[190] As for the dignitary harms that workers identified, it remains an open question whether the dignitary harms that workers experience can be remedied through the criminal or civil systems. Workers' rights attorneys with whom I spoke identified feelings of relief among their clients when criminal prosecutions did not move forward as they did not wish to be involved in the process, even when it was purportedly for their own benefit.[191] Further research focused on impacted workers' experiences with both systems is necessary to understand whether and how these systems address those dignitary harms.

B. *Workplace Harms*

The expressive message of criminal penalties, with little or no enforcement, seems especially targeted at remedying workplace harms. Scholars have argued that the law's expressive function can change norms around what society deems acceptable.[192] In his article, Levin questioned whether the norm-changing result of expressivism sought by proponents of wage theft criminalization can be achieved where the criminal system is not accessible to the public in a way that it gets the message that wage theft is a crime.[193] Indeed, New York, Connecticut, and Washington, D.C., have had criminal penalties provisions for wage theft in some form for over

189. Civil enforcement mechanisms present a similar problem in that enforcement agencies, or workers in private settlements, agree to forego penalties under civil wage and hour laws to reach a settlement more quickly. Elizabeth Ford describes this as "enforcement mechanisms . . . broker[ing] no-interest loans from employees to their employers." Elizabeth Ford, *Wage Recovery Funds*, 110 CALIF. L. REV. 1503, 1506 (2022). As discussed in Part V, Ford and others have developed strategies in the civil system to address this problem.

190. *See* Noreen Ahmed, *Exposing Wage Theft Without Fear Is Possible AND Necessary*, NAT'L EMP. L. PROJECT (Sept. 16, 2019), https://www.nelp.org/exposing-wage-theft-without-fear-possible-necessary/ [https://perma.cc/3E4C-LSW8].

191. Interview with Workers' Rights Attorney (Dec. 9, 2024) (on file with author).

192. Cass R. Sunstein, *On the Expressive Function of Law*, 144 U. PA. L. REV. 2021, 2022, 2031–33 (1996) (providing examples where the expressive function of the law changes social norms, even in the absence of enforcement).

193. Levin, *supra* note 21, at 1472.

forty years.[194] While employers with access to legal counsel may benefit from learning about the risks of committing wage theft, employers with no such access, like small business owners, may not get that message.

The expressive function of criminal law is closely tied to deterrence. Some proponents of criminalization have argued that the criminal penalties alone, even without enforcement, deter employers from committing wage theft.[195] Specific deterrence would address the harm to the specific workplace where an employer committed wage theft by stopping that employer from doing it again.[196] General deterrence would address harms to workplaces more broadly by deterring other employers from committing wage theft.[197] Deterrence, whether specific or general, is extremely difficult to measure and study, and this Article makes no attempt to do so. Nonetheless, because it is such a significant reason workers seek enforcement mechanisms, an examination of the existing literature and criminal strategies in the context of deterrence warrants further consideration.

Empirical studies focused on wage theft deterrence suggest that criminal penalties do not provide significant deterrent effects. In a 2016 study examining minimum wage violations, Daniel Galvin found that "low-wage workers in states with stronger employment laws had a statistically significantly lower probability of experiencing a minimum wage violation."[198] While recognizing that various factors could explain this correlation, such as greater enforcement in areas with stronger protections and cultural factors related to compliance with wage and hour laws in each jurisdiction, Galvin explained that stronger protections could lower rates of minimum

194. In Connecticut, for example, criminal penalty provisions have existed under section 31-71g, the more frequently charged statute, since 1978. When the legislature considered that provision in 1978, Senator Nancy L. Johnson advocated for her proposed amendment to section 31-71g to include criminal penalty provisions by stating, "The payment of earned wages is a basic gut-level right that should be assured by clear, strong state statutes . . . . Stricter penalties should discourage employers from this abuse." *1978 Joint Committee on Labor: Public Hearing on 1978 P.A. 358/S.B. 444* (Conn. 1978) (statement of Sen. Nancy Johnson), https://ctatatelibrarydata.org/wp-content/uploads/lh-bills/1978_PA358_SB444.pdf [https://perma.cc/57NF-CC2D]. Proponents of criminal penalties use the same reasoning today—that these penalties will deter employers.

195. Gerstein & Seligman, *supra* note 109.

196. GERSTEIN, *supra* note 106.

197. *Id.*

198. Galvin, *supra* note 34, at 332.

wage violations.[199] Indeed, Galvin found that the states that implemented robust civil penalties, specifically treble damages, experienced statistically significant drops in violation rates while smaller civil or criminal penalties did not have statistically significant effects.[200] Tess Hardy examined the empirical literature on deterrence in the wage theft context and concluded that the perceived risk of detection was more significant than the nature or size of the possible penalty.[201]

The criminal enforcement strategies in the jurisdictions examined follow neither of the practices found to be effective for deterrence. Statutory penalties for wage theft do not impose significant financial penalties, such as the high civil penalties found to be effective. All states with criminal penalties provide for some form of restitution, though that restitution may be equal to or even less than the amount of wages stolen.[202] Other fines and penalties vary considerably; while they may be significant in some states, such high penalties are triggered only when the employer steals substantial amounts of wages from workers.[203] Further, the enforcement of the criminal penalties provisions in the four jurisdictions examined showed that if the statutes led to convictions at all, those prosecutions were the result of selective enforcement.[204] In Connecticut, which had greater numbers of convictions compared to the other jurisdictions, only seventy-eight individuals were convicted over a twenty-year period with seven convictions at most in a single year.[205] Such limited enforcement means that employers are likely to perceive the risk of detection to be low.[206]

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199. *Id.* at 333–38.

200. *Id.* at 341.

201. Tess Hardy, *Digging into Deterrence: An Examination of Deterrence-Based Theories and Evidence in Employment Standards Enforcement*, 37 INT'L J. COMPAR. LAB. L. & INDUS. RELS. 133, 135, 158–59 (2021) ("[T]o better address the problem of wage theft, one must move away from the assumption that increasing the severity of the sanction will 'supercharge' deterrence in and of itself.").

202. *See supra* Section III.A.

203. *E.g.*, COLO. REV. STAT. § 8-4-114(h) (2025) (classifying some forms of wage theft as a felony, if the amount stolen is $1,000,000 or more); *id.* § 18-1.3-401(1)(a)(III)(A) (imposing a possible fine of between $5,000 and $1,000,000 for class 2 felonies).

204. *See supra* Section III.B.

205. *Id.*

206. For crimes targeting corporate entities, some have noted that local criminal enforcement agencies are ill-equipped to investigate and prosecute such crimes. SALLY S. SIMPSON, CORPORATE CRIME, LAW, AND SOCIAL CONTROL 46 (Alfred Blumstein & David Farrington eds., 2002) (explaining how traditional policing techniques are "unsuited for or are unable to penetrate the corporate setting").

In the criminal system, the most severe way of achieving deterrence is incarceration. In jurisdictions in which wage theft is a felony, the length of a possible prison sentence for a felony conviction is extreme. In Colorado and Minnesota, two states that enhanced criminal penalties in the past five years, individuals who commit wage theft may be subject to twenty-four or twenty years of incarceration, respectively, depending on the amount of wages stolen.[207] With regards to incarceration, workers' goals and the practices in the criminal system may diverge. Employers are not unknown to workers; rather, workers may have close relationships with employers, especially those in small businesses. Workers' perception of justice may vary, given these relationships.

The prosecution of one defendant in Connecticut illustrates this point. The defendant, an immigrant and employer of immigrant workers, was accused of stealing $218,000 in wages from his employees and faced numerous criminal charges after defaulting on payments pursuant to an agreement with the state department of labor.[208] When faced with criminal prosecution, he sought accelerated rehabilitation, which would allow him to avoid conviction and a criminal record.[209] Four former employees testified against the employer defendant's request for rehabilitation, and the state argued for conviction, while twelve current and former employees testified in favor of the application, which the court ultimately granted.[210] This case serves to illustrate that the criminal system does not allow for consideration of the complexity of the relationship between an individual accused and an individual victimized. Because of this, even when goals may be shared, the way in which the criminal system achieves those goals and how workers hope to achieve those goals diverge significantly.

207. *See* COLO. REV. STAT. § 8-4-103 (2025) (incorporating wage theft into larceny statute); *id.* § 18-1.3-401(1)(a)(IV)–(V.5)(A) (providing sentencing range of eight to twenty-four years for class 2 felony conviction); MINN. STAT. § 609.52, subd. 2(19) (2025) (defining wage theft as theft under Minnesota's Criminal Code); *id.* § 609.52, subd. 3(1) (setting maximum sentence of twenty years for theft offense).

208. *State v. Cho*, No. N23NCR140145772, 2014 LEXIS 81843, at *1–3 (Conn. Super. Ct. Nov. 17, 2014).

209. *Id.* at *1–3.

210. *Id.* at *2–3.

C. *Community Harms*

Even more than individual or workplace harms, proponents and impacted workers diverge most with regards to community harms. Some proponents of criminal strategies frame community harm as harm to the state, rather than harm to communities to which impacted workers belong. By pursuing criminal prosecution, they therefore seek to remedy the state harm, not necessarily harm to workers or to their communities.[211] Criminal penalties provisions often include some penalty that individuals convicted must pay to the state.[212] While proponents may argue that these penalties, which serve to add funding to important public programs, trickle down to impacted workers, as well as other citizens, they nonetheless fail to address the harms to communities to which impacted workers belong. Further, for undocumented workers, who are disproportionately harmed by wage theft,[213] payments to programs, like Social Security or unemployment, for which they are not eligible, offer no direct benefit to them.[214]

The failure of the criminal system, however, is not just *whether* the system remedies community harms, but *how* the criminal system seeks to do so. Critical legal scholars have written extensively about how the criminal legal system harms Black and brown communities,[215] as well as immigrant communities,[216] and some have argued that racial inequities and subordination are not symptoms of an unjust system but rather the very purpose of it.[217] The harms to marginalized communities documented in this literature and the experiences of justice-involved individuals cannot be

211. Levin, *supra* note 21, at 1450 (noting how some proponents of criminalization emphasize that the state or society as a whole are victims).

212. *See, e.g.*, Plea Agreement, New York v. Double "O" Landscaping Inc. (June 23, 2015).

213. Bernhardt et. al., *Employers Gone Rogue*, *supra* note 3, at 816.

214. *See* 8 U.S.C. § 1621 (denying immigrants without work authorization, with some exceptions, access to state and federal public benefits programs).

215. *E.g.*, MICHELLE ALEXANDER, THE NEW JIM CROW: MASS INCARCERATION IN THE AGE OF COLORBLINDNESS 60–62 (2020) (arguing that the criminal legal system served as a racialized system of social control of Black people in the U.S.). *See generally* KHALIL GIBRAN MUHAMMAD, THE CONDEMNATION OF BLACKNESS: RACE, CRIME, AND THE MAKING OF MODERN URBAN AMERICA (2019).

216. *See generally* ALINA DAS, NO JUSTICE IN THE SHADOWS: HOW AMERICA CRIMINALIZES IMMIGRANTS (2020); *see also* Yolanda Vázquez, *Perpetuating the Marginalization of Latinos: A Collateral Consequence of the Incorporation of Immigration Law into the Criminal Justice System*, 54 HOW. L.J. 639, 644 (2011).

217. *See* Dorothy E. Roberts, *The Supreme Court, 2018 Term—Foreword: Abolition Constitutionalism*, 133 HARV. L. REV. 1, 4–9, 20 (2019).

overlooked. Instead of revisiting the myriad harms inflicted by the criminal system, this Section focuses on specific practices implemented through wage theft criminal strategies. It describes three practices within the criminal system that illustrate how it fails to remedy community harms and even works to further exacerbate them.

1. Criminal System Actors and How They Operate

In the criminal system, prosecutors and judges hold significant power,[218] especially as compared to the individuals facing criminal charges and the victims in criminal cases.[219] In the wage theft context, proponents of criminal strategies imagine prosecutors harnessing this power to target wealthy employers who commit wage theft at egregious levels and to achieve justice for those most impacted.[220] Wage theft prosecutions to date in the jurisdictions examined do not support that narrative. In Connecticut, for example, over a quarter of convictions involved a single count of low amounts of stolen wages, which are hardly the egregious cases proponents claim to warrant criminal prosecution.[221] In New York, under Attorney General Schneiderman, half of individuals prosecuted were people of color or immigrant business owners.[222] In both situations, prosecutors were likely targeting informal businesses, which rely heavily on marginalized workers, like undocumented immigrants, for labor.[223] This is not the only context in which the promise to pursue the most egregious matters falls short and instead targets already vulnerable populations. In an empirical study of federal prosecutions of financial crimes, Stephanie Holmes Didwania

218. *See* JOHN F. PFAFF, LOCKED IN: THE TRUE CAUSES OF MASS INCARCERATION—AND HOW TO ACHIEVE REAL REFORM 133 (2017) (arguing that prosecutors' behavior in seeking to prosecute more harshly and punitively acts as a primary driver of mass incarceration); ANGELA J. DAVIS, ARBITRARY JUSTICE: THE POWER OF THE AMERICAN PROSECUTOR 12–14 (2007) (examining the prosecutors' power through their exercise of discretion with regard to different aspects of the criminal legal system).

219. *See generally* I. Bennett Capers, *Against Prosecutors*, 105 CORNELL L. REV. 156 (2020) (proposing a shift from public prosecution, where state actors drive prosecutions with little input from those harmed, to private prosecutions brought by the person harmed by a crime).

220. *See supra* Section II.C.

221. *See supra* Section III.B.

222. *Id.*

223. Bernhardt et al., *Employers Gone Rogue*, *supra* note 3, at 819, 823 (finding lack of work authorization to be one worker characteristic that correlated to higher workplace violations, like wage theft).

found that, contrary to scholarly and public discourse, financial crimes prosecutions disproportionately involved people who are low-income and people who are Black.[224]

Additionally, wage theft enforcement in the criminal system relies on a rigid binary pervasive in the criminal system. Scholars of progressive prosecutor movements have argued that, to succeed at achieving the decarceral goals of the movement, prosecutors must behave in ways contradictory to the adversarial criminal system.[225] Olwyn Conway offered a framework for prosecutors to escape the binary thinking inherent within the criminal system: by intentionally incorporating restorative justice practices.[226]

Prosecutors of wage theft, however, make no attempt to change the adversarial nature of the system; instead, they rely on those very features to prosecute employers.[227] They employ an overly simplified narrative of "good" and "bad" actors and merely alter the actors involved—going after presumably wealthy "bad" employers to recover stolen wages for "good" and hardworking employees.[228] This binary thinking ignores the complex relationship between a worker and their employer, where the parties know each other and may have worked together for significant periods of time. As illustrated by the Connecticut case example in the prior Section,[229] workers may hold more complex and varied ideas of what justice

224. Stephanie Holmes Didwania, *Regressive White-Collar Crime*, 97 S. CAL. L. REV. 299, 329–30 (2024).

225. Gajwani & Lesser, *supra* note 20, at 82–83 (explaining structural barriers inherent in adversarial criminal legal system that inhibit progressive reform); Chesa Boudin & Tal Klement, *Progressive Prosecution from Politics to Policy to Practice*, 16 STAN. J. C.R. & C.L. 489, 490–91 (2021) (arguing that progressive "prosecutors must intentionally and proactively create policies and practices that are decarceral" and "reject the idea that the criminal justice system is the most effective mechanism to address social and public health problems").

226. Olwyn Conway, *Beyond Binary Thinking: Addressing the Biases that Threaten the Progressive Prosecution Movement*, 19 OHIO ST. J. CRIM. L. 1, 2, 11–15 (2021) ("[P]rogressive prosecutors must be active participants in the transformation of the American criminal system from an adversarial and punitive system of citizen control to a rehabilitative and restorative system that effectively addresses and prevents individual and community harm.").

227. *See supra* Section III.B (analyzing New York Attorney General's Office press releases).

228. Levin, *supra* note 21, at 1433 ("[W]age theft conjures up bad actors and innocent workers. . . . The phrase implies an easy (and uncritical) analogy to the realm of property crime, bringing with it the same certainty that bosses have taken what does not belong to them and have therefore offended community morality.").

229. *See State v. Cho*, No. N23NCR140145772, 2014 LEXIS 81843, at *3 (Conn. Super. Ct. Nov. 17, 2014).

means to them, nuances that are incompatible with the criminal system's way of functioning.

Further, prosecutors are not the only actors with great discretion in the criminal legal system. Depending on the jurisdiction, judges also hold great discretionary power, especially when it comes to making determinations about incarceration.[230] For example, the Pennsylvania Attorney General charged an employer in the construction industry with violations of the state's prevailing wage laws, which require contractors with the state to pay a designated wage rate.[231] The court rejected prior plea deals because it determined that "a term of incarceration would be warranted to 'send a message' to other offenders."[232] At sentencing, defense counsel presented forty character letters, testimony, and evidence showing the defendant had paid restitution.[233] Nonetheless, the judge ultimately sentenced the defendant to a period of incarceration.[234]

In the criminal system, individuals facing prosecution are subject to the discretionary behavior of various actors along the way, including prosecutors and judges. Even if prosecutors' offices may seek to align themselves with workers' goals, they remain subject to judges' orders. Given that many judges and prosecutors are elected,[235] impacted workers remain subject to the discretion and political motivations of these various actors within the criminal system. While some proponents argue for wage theft prosecutions within units specifically designed to have labor law-trained prosecutors working closely with impacted communities to target

230. Sarah Gottlieb, *Progressive Facade: How Bail Reforms Expose the Limitations of the Progressive Prosecutor Movement*, 81 WASH. & LEE L. REV. 1, 44 (2024) (noting that some progressive prosecutors trying to implement less punitive approaches to bail faced pushback from local judges).

231. Commonwealth v. Goodco Mech., Inc., 291 A.3d 378, 386–87 (Pa. Sup. Ct. 2023) (appealing convictions under Prevailing Wage Act on constitutional grounds).

232. *Id.* at 411; *see also* Ted Craig, *HVAC Contractor Sent to Jail in State's First Criminal Wage Case*, THENEWS (May 21, 2021), https://www.achrnews.com/articles/144931-hvac-contractor-sent-to-jail-in-states-first-criminal-wage-case [https://perma.cc/U5CG-D4GW] (noting that defendant's attorney commented post-sentencing that prosecutors did not argue for incarceration as a sentence and the judge-imposed imprisonment).

233. *Goodco*, 291 A.3d at 389.

234. *Id.* at 390.

235. CARISSA BYRNE HESSICK, UNIV. N.C. SCH. L., THE PROSECUTORS AND POLITICS PROJECT, NATIONAL STUDY OF PROSECUTOR ELECTIONS 4 (2020), https://law.unc.edu/wp-content/uploads/2020/01/National-Study-Prosecutor-Elections-2020.pdf [https://perma.cc/T724-V24U] (explaining that prosecutors hold great power in the criminal system and forty-five states elect prosecutors).

egregious violators and seek justice for those workers,[236] the reality is that workers, as victims of wage theft, are granted little power in the criminal system and are subject to the whims of those who do hold power.[237]

2. Threats of Incarceration

As Levin explained, criminalization relies on a "punitive impulse" that feeds "the massive apparatus of the carceral state."[238] That impulse is clear in the analysis of state criminal penalties. Jurisdictions, like New York and Minnesota, created new provisions making wage theft a felony, which carry significantly longer periods of incarceration.[239] For proponents who rely heavily on the expressive message of criminal law, the threat of incarceration carries great weight. The effectiveness of the threat of incarceration, however, requires relying on the inhumane U.S. prison system as it exists today.[240] For people incarcerated within the U.S. prison system, who are disproportionately Black and Latine,[241] the system's inhumanity harms the very same communities to which workers impacted by wage theft belong.

While criminal strategies for wage theft rely heavily on the threat of incarceration to compel compliance,[242] some proponents

236. *See, e.g.*, Rosado Marzán, *supra* note 107, at 300.

237. E-mail from Workers' Rights Attorney, to Alia Al-Khatib (Oct. 9, 2024) (on file with author) (explaining that workers' attorneys in civil cases were not permitted to accompany clients to interviews for the criminal investigation); Interview with Workers' Rights Attorney (Oct. 21, 2024) (on file with author) (describing one case referred for criminal prosecution in which impacted worker never received information on status of case or whether he received restitution).

238. Levin, *supra* note 21, at 1437–38.

239. *See infra* Section III.B.

240. *See* Allegra M. McLeod, *Prison Abolition and Grounded Justice*, 62 UCLA L. REV. 1156, 1173–84 (2015) (detailing the structure and practices that make U.S. prisons "places of intense brutality, violence, and dehumanization").

241. *See* ASHLEY NELLIS, THE SENT'G PROJECT, THE COLOR OF JUSTICE: RACIAL AND ETHNIC DISPARITY IN STATE PRISONS 6 (2021), https://www.sentencingproject.org/app/uploads/2022/08/The-Color-of-Justice-Racial-and-Ethnic-Disparity-in-State-Prisons.pdf [https://perma.cc/8HNC-SESD].

242. Rosado Marzán, *supra* note 107, at 313 ("The value of criminalization lies in its unambiguous moral condemnation of wage theft, in its capacity to shame employers who abuse their power, and in the real threat of imprisonment."); *see also* Anthony Damelio, *Making Wage Theft Costly: District Attorneys and Attorneys General Enforcing Wage and Hour Law*, 49 FORDHAM URB. L.J. 109, 140 (2021) (arguing that concerns about incarceration through wage theft criminal prosecution are overstated where prosecutors did not seek the harshest possible sentence in the cases examined and where incarceration served as a "backstop" for failure to pay restitution).

have noted that employers rarely face incarceration.[243] Connecticut provides the best assessment of incarceration rates. The data shows that, for individuals convicted under the more frequently charged statutory wage theft provision, twenty percent served a period of incarceration.[244] This small data set indicates that incarceration as a penalty, while not rare, is not frequent. That said, not all proponents shun the use of incarceration. In jurisdictions like New York, prison sentences resulting from wage theft convictions were splashed on press releases under prior Attorney General administrations.[245]

Further, the use of the threat of incarceration to compel compliance, even when incarceration does not result, is a practice that harms marginalized communities more than it serves them. In some jurisdictions, the threat of incarceration, and often resulting incarceration, to extract money from communities targeted by the criminal system has been so egregious that such practices have led to federal investigations and a stream of litigation challenging what has been referred to as debtors' prisons.[246] For those who must pay restitution as a condition of release or otherwise face incarceration, if they have no assets, they are then compelled to labor.[247] The pay-up-or-face-prison ultimatum that disproportionately harms poor individuals accused of crime and often people of color also impacts some employers prosecuted for wage theft.[248] The reliance on this practice and others only further entrenches

243. *See* Terri Gerstein & LiJia Gong, *How Local Government Can Protect Workers' Rights Even When States Do Not Want Them To: Opportunities for Local Creativity and Persistence Despite Double Preemption*, 51 FORDHAM URB. L.J. 977, 1022 (2024); Damelio, *supra* note 242, at 139–40 (claiming that "employers have largely avoided jail time by pleading guilty and making restitution payments to affected workers").

244. *See supra* Section III.B.

245. *Id.*

246. *See* U.S. DEP'T JUST., C.R. DIV., INVESTIGATION OF THE FERGUSON POLICE DEPARTMENT 42–69 (2015), https://www.justice.gov/sites/default/files/opa/press-releases/attachments/2015/03/04/ferguson_police_department_report.pdf [https://perma.cc/KRV5-J4ME] (detailing municipal court practices that impose harsh fine and penalties, and disproportionately so against Black community members, who otherwise face jail if they are unable to pay); Alysia Santo, *How to Fight Modern-Day Debtors' Prisons? Sue the Courts.*, MARSHALL PROJECT (Oct. 1, 2015, 2:45 PM), https://www.themarshallproject.org/2015/10/01/how-to-fight-modern-day-debtors-prisons-sue-the-courts [https://perma.cc/7ZMQ-TS HE].

247. *See* Noah D. Zatz, *Get to Work or Go to Jail: State Violence and the Racialized Production of Precarious Work*, 45 LAW & SOC. INQUIRY 304, 306–09 (2020) (examining carceral work mandates in three different contexts and their relationship to, and reproduction of, precarious work).

248. Heltzel, *supra* note 178 (describing defendant employer's financial challenges).

such practices in the criminal system, to the continued detriment of marginalized communities.

3. Collateral Consequences

While proponents note concerns about potential immigration consequences for immigrant workers impacted by wage theft, these concerns do not extend to immigrant business owners.[249] Noncitizen business owners criminally accused of wage theft face potentially severe immigration consequences, depending on the jurisdiction.[250] As noted in Part III, fifteen states have wage theft criminal penalties stating that, if defendants are sentenced to one year of incarceration, they may be deportable for having an aggravated felony conviction, regardless of whether the sentence is suspended.[251] Aggravated felony convictions subject noncitizens to mandatory detention[252] and bar access to common forms of immigration relief.[253] Immigrants with contact with the criminal system may be easily funneled to immigration enforcement,[254] where they

249. *See* Stephen Lee, *Policing Wage Theft in the Day Labor Market*, 4 U.C. IRVINE L. REV. 655, 657–58 (2014) (warning of overlapping enforcement of local authorities and immigrant enforcement that may put workers at risk of immigration enforcement); GERSTEIN, *supra* note 106, at 26–28 (arguing for criminal prosecution of wage theft while also stating that prosecutors should be aware of immigration consequences).

250. *See, e.g.*, Defendant's LLC Sentencing Memorandum at 2, State of Washington v. Sandoval Constr., No. 18-C-00605-4 SEA (Wash. Super. Ct. July 27, 2018) (stating that defendant will likely be deported after completing his sentence).

251. *See* 8 U.S.C. § 1101(a)(43)(G) (defining an aggravated felony as "a theft . . . or burglary offense for which the term of imprisonment [is] at least one year"). States like Minnesota and New York have reduced possible sentences for minor larceny offenses to 364, instead of 365, days. MINN. STAT. § 609.52, subd. 3(4) (2025); N.Y. PENAL LAW § 70.15(1) (2025). While the change may seem minor, immigrants convicted of such misdemeanors and sentenced to the maximum sentence of 364 days no longer risk a conviction deemed an aggravated felony. In passing legislation, states recognize the harms of the criminal legal system on immigrants, their families, and their communities; yet, those convicted of offenses of greater value are determined to be undeserving of such protection. These states draw a line between "good" and "bad" immigrants, having determined that those who are convicted of lower-level theft offenses deserve protection from the deportation system while others do not.

252. 8 U.S.C. § 1226(c)(1)(B) (mandating detention for noncitizens with aggravated felony convictions).

253. 8 U.S.C. § 1158(b)(2)(B)(i) (making individuals with aggravated felony convictions ineligible for asylum); *id.* § 1229b(a)(3) (stating that lawful permanent residents are ineligible for cancellation of removal—a form of deportation relief—if they have an aggravated felony conviction).

254. *See* Alia Al-Khatib, Comment, *Putting a Hold on ICE: Why Law Enforcement Should Refuse to Honor Immigration Detainers*, 64 AM. U. L. REV. 109, 129–30 (2014) (describing the use of the immigration detainer, or immigration hold, to transfer individuals held in state or local criminal custody directly to federal immigration enforcement); *Trump's*

have few options, especially with a criminal conviction. What Alina Das describes as the "deportation machine" ensnares individuals with strong family and community connections.[255] The removal of immigrant business owners and their possible deportation compounds community harm. The mechanisms that funnel immigrants charged or convicted of crimes from the criminal system to the deportation machine cannot be mitigated by well-intentioned prosecutors.[256]

Further, the rigid binary discussed in the prior Section of good versus bad and non-criminal versus criminal feeds into an already dangerous narrative about immigrants who commit crime.[257] Given the current political climate and fearmongering around "migrant crime,"[258] reinforcing this dangerous binary has significant negative consequences for immigrants, for workers, and for their communities. This rhetoric has been used to fuel overly punitive immigration enforcement. Under the current administration, which regularly conflates immigrants and criminals to a degree that immigration enforcement actions have targeted any noncitizen or person perceived to be a noncitizen,[259] any interaction with the criminal system may have detrimental consequences.

Ineffective Use of ICE Detainers: Numbers Jump but Few Produce Results, TRAC IMMIGR. (Apr. 14, 2025), https://tracreports.org/reports/758/ [https://perma.cc/NK6J-9FWC] (indicating significant uptick in immigration detainers issued in early 2025 with less than a third against individuals with any criminal conviction).

255. DAS, *supra* note 216, at 59–86.

256. For example, the Laken Riley Act, enacted on January 29, 2025, requires the Department of Homeland Security to detain a noncitizen "unlawfully present in the United States or [one who] did not possess the necessary documents when applying for admission" who is charged with, arrested for, or convicted of theft, larceny, or burglary, among other criminal offenses. Laken Riley Act, Pub. L. No. 119-1, 139 Stat. 3 (2025).

257. *See, e.g.*, Jayesh Rathod, *Transformative Immigration Lawyering*, 132 YALE L.J. F. 632, 640–41 (2022); SILKY SHAH, UNBUILD WALLS: WHY IMMIGRANT JUSTICE NEEDS ABOLITION 30–43 (2024).

258. *See* Alex Nowrasteh, *The Potent Political Effect of Border Chaos and Immigrant Crime: Separating Rhetoric from Reality*, CATO INST. (July 17, 2024, 4:10 PM), https://www.cato.org/blog/potent-political-effect-border-chaos-immigrant-crime-separating-rhetoric-reality [https://perma.cc/T9UP-4RJ9] (explaining that rhetoric about migrant crime does not match empirical data that shows lower rates of homicide convictions among both undocumented and documented immigrants, though opining that such rhetoric is an effective political strategy); Brianna Seid, Rosemary Nidiry & Ram Subramanian, *Debunking the Myth of the 'Migrant Crime Wave'*, BRENNAN CTR. JUST. (May 29, 2024), https://www.brennancenter.org/our-work/analysis-opinion/debunking-myth-migrant-crime-wave [https://perma.cc/W9SU-FQJT] (explaining that studies show no correlation between crime rates and undocumented immigration).

259. Dani Anguiano, *U.S. Citizen Arrested During ICE Raid in What Family Describes as 'Kidnapping'*, THE GUARDIAN (June 26, 2025, 4:39 PM), https://www.theguardian.com/us-news/2025/jun/26/immigration-ice-raid-andrea-velez [https://perma.cc/P2UD-PLVC].

Prosecutors' offices that target immigrant employers, even with the intention of benefiting immigrant workers, feed this narrative, whether intentionally or not.

Finally, the impact of criminalizing immigrants—and funneling them to the deportation system by way of the criminal system—reverberates beyond individual cases. Levin argues that advocacy in favor of wage theft criminalization fails to grapple with parallel movements challenging the carceral state—from decarceration to restorative justice.[260] It also fails to grapple with the immigrant justice movement, specifically those in the movement challenging criminalization of immigrants.[261] Indeed, the rigid and undemocratic nature of the criminal system undermines coalition building and worker-centered strategies described in more detail in Part V.

V. PURSUING WORKER-CENTERED STRATEGIES

If policymakers and advocates ultimately abandon criminal strategies to address wage theft, the question becomes: what are other strategies worth investing in? This Part identifies some possible wage theft strategies specifically tailored to distinct spheres of harm experienced by impacted workers. These strategies seek to address the spheres of harm and to advance a model of labor and employment law and its enforcement that emphasizes centering impacted workers and collective action.[262]

260. Levin, *supra* note 21, at 1435–36.

> [T]he dominant position of criminal justice commentators has been that criminal law has overflowed its banks, reaching too much conduct and authorizing punishments that are draconian and indefensible. Increasingly, discussions about criminal law and policy focus more on whether the system should be downsized or abolished than on what new areas it should address.

Id.

261. Angélica Cházaro, *Beyond Respectability: Dismantling the Harms of "Illegality,"* 52 HARV. J. ON LEGIS. 355, 355–57 (2015); DAS, *supra* note 216, at 8–9; SHAH, *supra* note 257.

262. *See* Kate Andrias, *The New Labor Law*, 126 YALE L.J. 2, 68 (2016) (using the Fight for $15 movement as an example to describe a new model of employment law as "a collective project to be jointly determined and enforced by workers, in conjunction with employers and the public"); Benjamin I. Sachs, *Employment Law as Labor Law*, 29 CARDOZO L. REV. 2685, 2687 (2008) ("Faced with a traditional labor law regime that has proven ineffectual, workers and their lawyers are turning to employment statutes like the Fair Labor Standards Act (FLSA) and Title VII of the Civil Rights Act of 1964 as the legal guardians of their efforts to organize and act collectively.").

A. *Centering Workers' Experiences*

Workers harmed by wage theft frequently express an interest in getting paid what they are owed, preventing the employer from harming others, and having strong protections against retaliation from employers.[263] In testimony in support of D.C.'s 2014 Wage Theft Prevention Act, impacted workers emphasized that they wanted to recover their wages more quickly, to be protected from retaliation, and to curb the exploitation of workers in their communities.[264] Likewise, day laborers in Denver lamented the slow pace of remedies for wage theft.[265] While some reported they would take action if they had their wages stolen, surveys revealed that many did not move forward with seeking legal assistance due to the time needed to do so with often little to show for it in return.[266]

To make the process more accessible and efficient for workers, different jurisdictions have streamlined mechanisms to adjudicate wage theft claims. Washington, D.C.'s, 2014 law created an improved administrative mechanism for adjudication of wage and hour violations before an administrative law judge.[267] Other jurisdictions developed specific agencies or offices[268] to which workers can report wage theft violations and seek redress. In her article, Elizabeth Ford presented a creative and viable case for wage recovery funds, a pool of funds housed at a government agency or community organization that would allow workers impacted by wage theft to recover wages, penalties, and interest upfront and then the fund, through an assignment of the workers' wage and hour claim, would pursue recovery through administrative enforcement proceedings.[269] She described three different possible wage

263. *See* BERKE GALEMBA, *supra* note 8, at 119 (explaining that some workers seek redress for wage theft in an effort to prevent employers from exploiting others).

264. *See* COUNCIL OF D.C. COMM. ON BUS., CONSUMER, & REGUL. AFFS., *supra* note 37, at 5–13.

265. *Id.* at 113–14.

266. *Id.*

267. Wage Theft Prevention Amendment Act of 2014, 61 D.C. Reg. 010157 (Sept. 19, 2014) (codified at D.C. CODE § 32-1308.01 (2026)).

268. *E.g.*, Denver Council Bill No. 22-1614 (Jan. 9, 2023) (codified at DENVER, COLO., CODE ch. 58 (2023)), https://denvergov.org/files/assets/public/v/2/auditor/documents/denver-labor/2023/22-1614-denver-civil-wage-theft-ordinance.pdf [https://perma.cc/L99W-J6R4] (creating new procedures for civil wage theft and vesting Denver Auditor's Office with responsibility for implementation and enforcement); *see also* BERKE GALEMBA, *supra* note 8, at 125–27 (explaining Colorado's revised administrative process enacted in 2014 and obstacles that workers still face in engaging this process).

269. Ford, *supra* note 189, at 1514–15.

recovery fund models and identified steps to create and implement them.[270] While the strategies may vary by jurisdiction, taking into account the industries involved and workers most impacted, they provide mechanisms for remedying wage theft in an accessible and efficient manner.

Advocates have also developed creative strategies for making complaints more accessible to workers. In 2022, a partnership between Justicia Lab and Make the Road New York led to the creation of an app, ¡Reclamo!, a tool to help workers understand possible wage theft claims and develop a demand letter for those claims.[271] This tool gives workers access to legal information, a clear way to calculate what they are owed, and one avenue to seek relief.[272] Particularly for workers with small claims, for whom enforcement agencies and private attorneys may be unwilling to represent, this process allows them to seek what they are owed efficiently and easily.

Consistent with Galvin's research showing that large civil penalties may effectively deter minimum wage violations, various jurisdictions have enhanced civil penalties as a strategy to deter wage theft.[273] In Washington, D.C., for example, the 2014 legislation provided for possible treble damages, in addition to back wages owed.[274] Other jurisdictions have similarly developed enhanced civil penalties.[275] Though such penalties may be difficult to obtain in practice, they provide a greater possibility of resolving

270. *See id.* at 1521–37.

271. Patrick Sisson, *This App Is Helping Workers Reclaim Millions in Lost Wages*, MIT TECH. REV. (June 27, 2023), https://www.technologyreview.com/2023/06/27/1074330/app-helps-workers-reclaim-millions/ [https://perma.cc/3VT5-7JYE]; *see also* Emily Nonko, *A New Digital Legal Tool Helps Immigrant Workers Reclaim Their Stolen Wages*, NEXT CITY (May 26, 2023), https://nextcity.org/features/a-new-digital-legal-tool-helps-immigrant-workers-reclaim-their-stolen-wages [https://perma.cc/F6GY-UM3C].

272. Nonko, *supra* note 271.

273. *See* Lee & Smith, *supra* note 17, at 779 (noting forty-seven percent of anti-wage theft strategies examined created or enhanced civil penalties); *see also* Galvin, *supra* note 34, at 341.

274. *See* Wage Theft Prevention Amendment Act of 2014, 61 D.C. Reg. 010157 (Sept. 19, 2014) (codified at D.C. CODE § 32-1012(b)(1)–(2) (2026)) (enhancing possible civil penalties for wage theft significantly by allowing workers to recover with their unpaid wages "an additional amount as liquidated damages equal to treble the amount of unpaid wages," though the court may consider employer defenses to the imposition of liquidated damages).

275. *E.g.*, 151 MASS. CODE REGS. §§ 20, 1B (2025) (awarding treble damages in private actions for minimum wage and overtime violations); 28 R.I. GEN. LAWS § 28-14-3.2(b) (2025) (limiting treble damages to unauthorized deductions made by employer of employee's wages); DENV., COLO., CODE OF ORDINANCES § 58-26(c)(2) (2026) (allowing auditor to seek three times the amount of unpaid wages and overtime compensation owed to a worker).

workers' individual harms beyond the unpaid wages. Furthermore, civil strategies have sought to address fears of retaliation through robust anti-retaliation protections.[276] Advocates, policymakers, and scholars have called for allowing workers' centers or advocates to bring claims on behalf of workers, and some jurisdictions have enacted this strategy.[277] Doing so assuages workers' fears of retaliation. For workers who face retaliation for making a wage theft claim, retaliation funds can provide one tool to allow those workers to access financial support.[278]

Deterrence can take forms beyond civil penalties, such as license revocation.[279] Courtlyn G. Roser-Jones examined government contracting initiatives at the state and local level to deter wage theft, which deny employers who commit wage theft government contracts, as well as other benefits like tax abatements and business licenses.[280] Washington, D.C.'s, current wage theft law provides for license revocation.[281] Other jurisdictions, such as Columbus, Ohio, and Washington State, have similar measures preventing companies that committed wage theft from obtaining government contracts.[282] Workers have also taken prevention into their own hands by identifying how employers commit wage theft and refusing to provide labor to such employers.[283]

Finally, another way in which workers seek change in and across workplaces is through public accountability, which need not be limited to the criminal system. One study found that publicizing

276. *See* Lee & Smith, *supra* note 17, at 789–93 ("Nearly half of the anti-wage theft laws [examined] included anti-retaliation provisions.").

277. *Id.* at 814–16; Fine & Gordon, *supra* note 4, at 563–71.

278. LAURA HUIZAR, NAT'L EMP. L. PROJECT, RETALIATION FUNDS: A NEW TOOL TO TACKLE WAGE THEFT 3–9 (2021), https://www.nelp.org/insights-research/retaliation-funds-new-tool-tackle-wage-theft/ [https://perma.cc/57SD-L3EK] (describing retaliation funds, financial support made accessible to workers who face retaliation for wage theft claims, that are administered by state and local agencies and that ideally partner with community-based organizations).

279. Lee & Smith, *supra* note 17, at 779–80 (stating that nearly a quarter of anti-wage theft laws examined authorized license revocations of some form).

280. Roser-Jones, *supra* note 72, at 1938, 1943.

281. *See* D.C. CODE § 32-1308.01(i)(2) (2026).

282. *See* Marcus Baram & Joel Jacobs, *In New York, Wage Theft Violators Get Millions in Government Contracts*, PROPUBLICA (July 15, 2024, 5:00 AM), https://www.propublica.org/article/new-york-wage-theft-violators-government-contracts [https://perma.cc/8NNN-MP4X] (describing different jurisdictions' government contracting prohibitions for wage and hour law); Roser-Jones, *supra* note 72, at 2006–14 (detailing provisions of the ordinance in Columbus, Ohio).

283. BERKE GALEMBA, *supra* note 8, at 96–97 (describing how day laborers alert each other to avoid certain employers based on exploitative practices).

violations of the Occupational Safety and Health Administration (OSHA) led to substantial improvements in rates of compliance at peer facilities in the same area.[284] Some jurisdictions require employers to post about wage theft-related actions[285] or to identify employers that committed wage theft to a public database.[286] Of course, advocates continue to pursue strategies to curb forced arbitration of civil claims stemming from the workplace, which would allow for public accountability through the courts, and have successfully done so for sexual assault and harassment claims.[287]

B. *Investing in Structural Change*

Many scholars of labor and employment law and low-wage work agree that broader systemic and structural change is necessary to stop the wage theft epidemic and other forms of exploitation of low-wage workers.[288]

To center workers in structural change, worker organizing and collective action, alongside and in collaboration with more traditional legal strategies, are essential.[289] Janice Fine and others have written extensively about co-enforcement, which she defines as "when unions, worker centers and other community-based non-profit organizations and high-road firms, in relationship with

284. Matthew S. Johnson, *Regulation by Shaming: Deterrence Effects of Publicizing Violations of Workplace Safety and Health Laws*, 110 AM. ECON. REV. 1866, 1866 (2020).

285. Lee & Smith, *supra* note 17, at 801.

286. HOUS., TEX., CODE OF ORDINANCES § 15-63(a) (Supp. 2026); *Wage Theft*, CITY OF HOUS. GOVERNMENT CTR. – FIN. DEP'T, https://www.houstontx.gov/finance/wage_theft.html [https://perma.cc/U6WD-LZEY].

287. *See* Ending Forced Arbitration of Sexual Assault and Sexual Harassment Act of 2021, Pub. L. No. 117-90, 136 Stat. 26 (2022) (codified as amended at 9 U.S.C. §§ 1, 201, 301, 401, 402) (invalidating arbitration agreements that prohibit litigation on claims involving sexual assault or sexual harassment); *see also* EMP. RTS. ADVOC. FOR L. & POL'Y, TAKING "FORCED" OUT OF ARBITRATION 3–4 (2016); Baran & Campbell, *supra* note 99, at 2.

288. WEIL, *supra* note 18, at 180–81; *see also* BERKE GALEMBA, *supra* note 8, at 8 ("Wage theft is a symptom of how decimated labor standards enforcement, unaccountable contracting arrangements, the decline of organized labor, and the devaluation of immigrants have degraded employment and normalized increasingly unjust wages and widening economic inequality.").

289. Worker collective action need not happen separately from litigation but rather in conjunction with attorneys' efforts to provide legal services to workers. *See* Elizabeth Ford, *Alt-Legal Services: Re-Visioning Lawyers' Role in the Fight for Worker Power*, 46 BERKELEY J. EMP. & LAB. L. 1, 1–2 (2025); *see also* Sachs, *supra* note 262, at 2687–88 (describing a shift to employment law strategies as an alternative form of worker organization and mobilization); Andrew Elmore, *Labor's New Localism*, 95 S. CAL. L. REV. 253, 301–03 (2021) (describing labor localism, which enhances labor law protections in localities and "joins the democracy-enhancing values of labor law and local law").

government inspectors, help educate workers on their rights and patrol their labor markets to identify businesses engaged in unethical and illegal practices."[290] Such models provide opportunities for direct worker engagement and sustained workplace monitoring. Janice Fine and Jennifer Gordon emphasized that, to implement effective co-enforcement strategies, partnerships must be formalized, sustained, and vigorous.[291] Examples of worker collective action, in conjunction with civil legal strategies, are abundant. Kati Griffith and Leslie Gates highlighted how worker organizing efforts catalyzed creative litigation strategies and described one success story among dairy workers in upstate New York.[292] Using an example of worker organizing in Chicago in response to wage theft, César Rosado Marzán detailed the importance of both organizing efforts and asserting legal protections for engaging in concerted protected activity under the NLRA.[293]

Although these strategies may not be possible in every context, they illustrate the importance of centering workers' experiences to advance broader structural change. In contrast to these strategies, the criminal system's antidemocratic impacts fail to enhance or facilitate worker-centered strategies.[294] Janice Fine and Jenn Round noted that some recent proposals to improve labor standards enforcement did not embrace a co-enforcement model and instead "relegat[ed] workers to passive victims and worker organizations to providing arms-length political support for agency enforcement and little else."[295] While their report did not address criminal strategies for wage theft, criminal strategies suffer from the same limitations. Such strategies turn workers into victims, an inevitable consequence of engaging in the criminal system, and regularly relegate worker organizations to the sidelines by denying them

290. Janice Fine, *New Approaches to Enforcing Labor Standards: How Co-Enforcement Partnerships Between Government and Civil Society Are Showing the Way Forward*, 2017 U. CHI. LEGAL F. 143, 146 .

291. Fine & Gordon, *supra* note 4, at 561.

292. Kati L. Griffith & Leslie C. Gates, *Milking Outdated Laws: Alt-Labor as a Litigation Catalyst*, 95 CHI.-KENT L. REV. 245, 248–50 (2020).

293. César F. Rosado Marzán, *Dignity Takings and Wage Theft*, 92 CHI.-KENT L. REV. 1203, 1204, 1206 (2017).

294. *See* Dorothy E. Roberts, *Democratizing Criminal Law as an Abolitionist Project*, 111 NW. U. L. REV. 1597, 1597 (2017) (arguing that criminal law's antidemocratic function, particularly as it relates to the subordination of Black people, requires an abolitionist approach); Jocelyn Simonson, *Democratizing Criminal Justice Through Contestation and Resistance*, 111 NW. U. L. REV. 1609, 1609–10 (2017).

295. FINE & ROUND, *supra* note 69, at 8.

participation in the criminal process.[296] Focusing on criminal strategies above others may only further deter workers' engagement in seeking broader change.[297]

Further, workers of color, when faced with an option to pursue criminal strategies that otherwise harm their communities, may be less inclined to engage with these systems, which they distrust.[298] Such distrust, of course, is not limited to the criminal system and may extend to the civil system.[299] Anti-wage theft strategies therefore must recognize impacted workers' experiences and develop strategies outside of traditional legal institutions. For example, workers in the garment industry in California, an industry infamous for wage theft violations and worker exploitation, organized to pass California legislation with greater protections for garment workers.[300] They continue to be engaged in efforts to hold large clothing brands accountable to workers. These workers, who are predominantly women and labor in industries in which they experience high levels of exploitation, are taking the lead to demand public accountability and systemic change in their workplaces. As more traditional systems of power fail to protect these workers, they are using their collective power and voices to demand change.

CONCLUSION

The expansive harms of wage theft, unreliable civil enforcement, and structural changes that normalized wage theft in various industries led some workers, policymakers, and advocates to turn to the criminal system to remedy wage theft violations. This Article argues for abandoning those criminal strategies for wage theft. It closely examines spheres of harm that wage theft inflicts upon individual workers—many of whom are people of color or

296. *See supra* Section IV.C.1.

297. Abigail Swenstein & Kate Mogulescu, *Resisting the Carceral: The Need to Align Anti-Trafficking Efforts with Movements for Criminal Justice Reform*, 6 ANTI-TRAFFICKING REV. 118, 118–19 (2016).

298. *See supra* Section IV.C.

299. Sara Sternberg Greene, *Race, Class, and Access to Civil Justice*, 101 IOWA L. REV. 1263, 1289–90 (2016) (describing how individuals' negative experiences with the criminal justice system tainted their experiences with the civil system and bred distrust in legal institutions more broadly).

300. Rucha Chitnis, *Garment Workers Organize to End Wage Theft*, YES! MAG. (Dec. 28, 2021), https://www.yesmagazine.org/social-justice/2021/12/28/garment-workers-fashion-industry-wage-theft [https://perma.cc/A7X4-NBHN].

immigrants—their workplaces, and their communities and offers a comprehensive examination of state statutory criminal penalties for wage theft and their enforcement in four jurisdictions. Not only does the criminal system fail to remedy individual and workplace harms that result from wage theft, but wage theft criminal enforcement also perpetuates practices detrimental to communities most impacted by wage theft and undermines efforts to advance worker-centered approaches.

Effective wage theft strategies require flexibility and nuance across industry, geography, and worker populations. Workers, advocates, and scholars have sought creative and practical avenues for addressing wage theft, ones that integrate workers and focus on building worker collective power. The criminal system's rigidity and reliance on punitive consequences does little to advance such efforts. With decades of criminal penalties for wage theft on the books and the dangers of how enforcement may impact those already marginalized, further entrenchment with the criminal system is not a strategy that is worth further pursuit. Workers, advocates, and policymakers should instead invest in strategies that center workers' voices, strengthen coalition with racial and immigrant justice movements, and seek broader structural change.

APPENDIX

Figure 1: Wage Theft Criminal Penalties

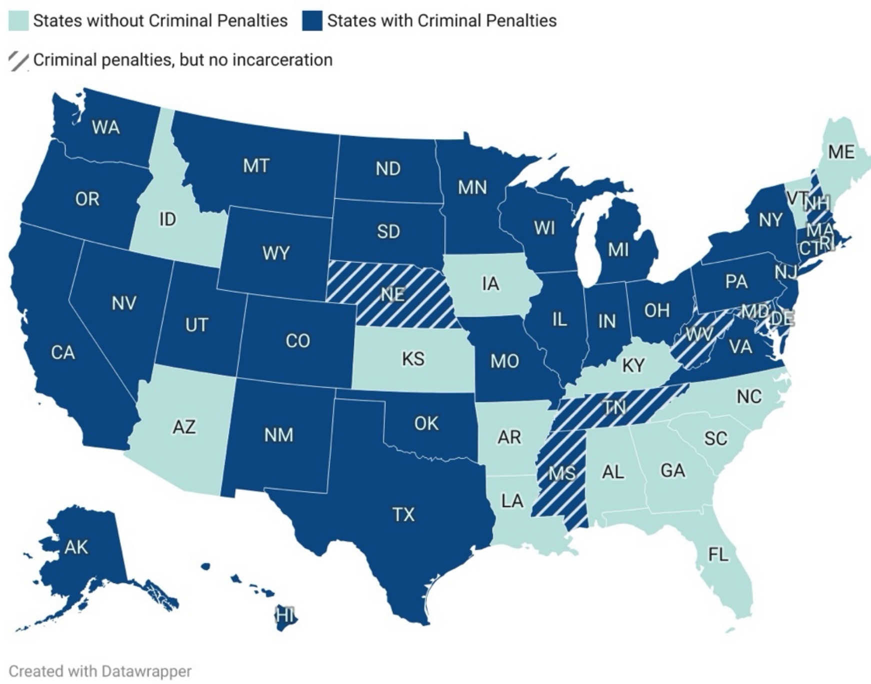

Figure 2: States that List Wage Theft as a Felony

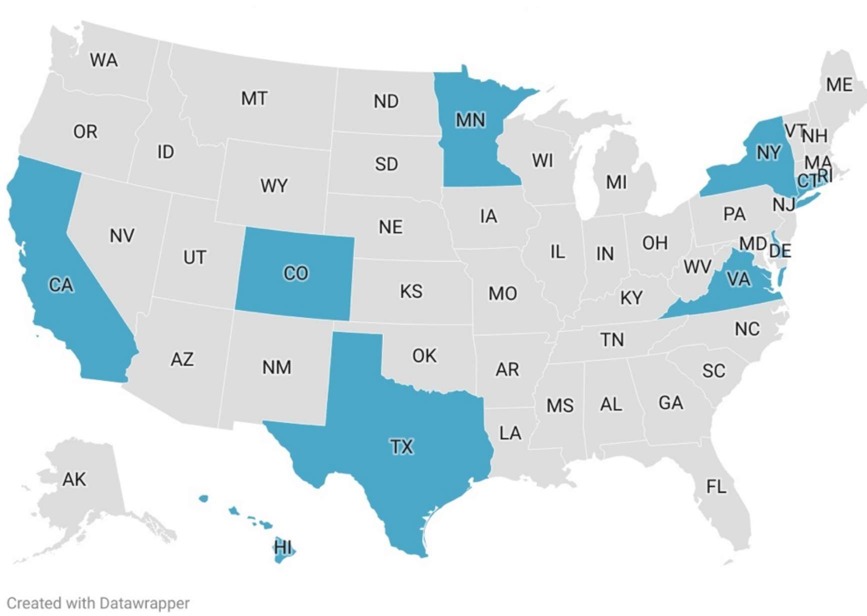

Figure 3: Wage Theft Conviction as Possible "Aggravated Felony" under Immigration Law